

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X Docket No.: 14CV8501
MARCO TRUJILLO,

Plaintiff,

-against-

**AMENDED
COMPLAINT AND
JURY DEMAND**

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, NEW YORK CITY POLICE DEPARTMENT
CAPTAIN DEODAT URPRASAD, NEW YORK CITY POLICE
DEPARTMENT DEPUTY INSPECTOR JOHN D'ADAMO, NEW
YORK CITY POLICE DEPARTMENT CHIEF THOMAS PURTELL,
NEW YORK CITY POLICE DEPARTMENT INSPECTOR JOHN
DANBERRY, NEW YORK CITY POLICE DEPARTMENT SERGEANT
JOHN RAJAN, NEW YORK CITY POLICE DEPARTMENT LIEUTENANT
ARIOLA, NEW YORK CITY POLICE DEPARTMENT CAPTAIN NICOLE
PAPAMICHAEL, NEW YORK CITY POLICE DEPARTMENT
DEPUTY CHIEF MCNAMARA, NEW YORK CITY POLICE DEPARTMENT
SERGEANT GEORGE EBRAHIM, NEW YORK CITY POLICE
DEPARTMENT INSPECTOR PAUL PIEKARSKI, NEW YORK
CITY POLICE DEPARTMENT CAPTAIN THOMAS TRAYNOR, NEW YORK
CITY POLICE DEPARTMENT LIEUTENANT FRANK BASENDELLO,
NEW YORK CITY POLICE DEPARTMENT LIEUTENANT JESUS ROMERO,
NEW YORK CITY POLICE DEPARTMENT SERGEANT BENEVOLENT
ASSOCIATION'S MANHATTAN NORTH DELEGATE SERGEANT CLIFF
THIELEKE and "JOHN DOES" and "JANE DOES", names being fictitious
intended to be officers/representatives/agents/servants of the New York City Police
Department, individually and in their official capacities,

Defendants.

-----X
Plaintiff MARCO TRUJILLO, (hereinafter "Plaintiff"), by and through his attorneys,
DRUMMOND & SQUILLACE, PLLC, states upon information and belief as follows:

INTRODUCTION

1. This is an action seeking compensation and damages pursuant to 42 U.S.C. §§
1981, 1981(a), 1983, 1986, 1988, 2000, 2000(e), 2000(e)(3), 2000(e)-2(a)(I), New York
Executive Law Art. 15 (NY Human Rights Law) New York State Human Rights Law Sections
290-297, the Administrative Code of the City of New York, Title VII of the Civil Rights Act of

1964, as amended by the Civil Rights Act of 1991, the Fourth and Eighth Amendments to the United States Constitution, and, the Constitution and the laws of the State of New York as well as for claims of tortuous acts, conduct and deliberate indifference of the above named Defendants, their agents, servants, employees, licensees, contractors, subcontractors, police officers, officers, employees and/or other affiliates agencies and departments in that they intentionally, maliciously, recklessly and with deliberate indifference to human life, each acting in concert with the other and each acting under the color of the law, violated Plaintiff's rights herein by wrongful and unlawful conduct including, but not limited to: unlawful use of excessive force, negligence, negligent hiring, negligent retention, negligent training, assault, battery, official misconduct, harassment, defamation, slander, libel, false/malicious prosecution in departmental hearings/trial, abuse of authority, abuse of power, abuse of trust, abuse of position, constructive termination, deviation and/or gross deviation from proper procedures, malice, recklessness, carelessness, negligence, negligent retention, negligent supervision, failure to intercede/stop/prevent, negligent/failure to discipline, intentional and/or negligent infliction of emotional distress, violation of civil rights, intentional and/or negligent infliction of cruel and unusual punishment, gross negligence, official misconduct, failure to/negligent monitoring of employees/police officers, failure to/negligent monitoring of employees/police officers with dangerous and/or violent propensities, causing, fostering, creating and/or allowing for dangerous/violent employees/police officers to harm citizens, including Plaintiff herein, and/or deprive citizens including Plaintiff herein of their safety, liberty, civil rights and their right to be free from false prosecution, use of excessive force, assault, battery, abuse of position/employment, title, rank and shield, constructive termination, vicarious liability, *respondeat superior* and/or punitive damages committed against and sustained/suffered by

Plaintiff MARCO TRUJILLO as a direct and proximate result of the Defendants' acts, conduct, omissions, negligence, intentional acts/omissions, recklessness, gross negligence, deliberate indifference in violation of Plaintiff's Federal and State rights herein.

JURISDICTION

2. This Court has jurisdiction over the within action pursuant to 28 U.S.C. §1343, federal question jurisdiction. This action is brought pursuant to 42 U.S.C. Sections 1981, 1983, 1986, 1988, 2000 and the Fourth and Eighth Amendments to the United States Constitution, and, the Constitution and the laws of the State of New York. Jurisdiction is founded upon 28 U.S.C. Sections 1331, 1343 and 2202. Plaintiff further invokes the supplemental jurisdiction of this Court to adjudicate pendent state law claims pursuant to 28 U.S.C. Section 1367.

3. Venue is proper in the Southern District of New York, pursuant to 28 U.S.C. §1391, 1391 (b).

EXHAUSTION OF CIVIL ADMINISTRATIVE PROCEDURES

4. Plaintiff timely filed his complaint with the Equal Employment Opportunity Commission (EEOC) -a charge of discrimination against Defendants based upon his race, national origin, color, ethnicity, retaliation, disparate treatment, hostile work environment, breach of contract and constructive termination against the Defendants. Plaintiff received a Notice of the Right to Sue from the EEOC and commenced the within action within 90 days of the receipt of his right to sue letter from the EEOC. (Annexed hereto and made a part hereof as Exhibit "A" are copies of Plaintiff's EEOC Charge and Notice of Right to Sue Letter).

NOTICE OF CLAIM

5. Plaintiff, in furtherance of his causes of action, timely filed a Notice of Claim against the City of New York in compliance with General Municipal Law Section 50 in response

to which the City of New York conducted a hearing of Plaintiff pursuant to General Municipal Law Section 50H. (Annexed hereto as Exhibit "B" is a copy of same Notice of Claim).

6. More than 30 days have elapsed since service of said Notice of Claim and the conducting of Plaintiff's 50H hearing and, to date, the City of New York has failed to pay or adjust the Plaintiffs claim.

7. This action has been commenced within three years and/or within one year and ninety days after the happening of the continuing unlawful events upon which these claims arise.

PARTIES

8. Plaintiff, MARCO TRUJILLO is a lawful resident of the United States and the State of New York.

9. That at all times herein mentioned, Defendant THE CITY OF NEW YORK was and is a municipal corporation existing by and under the laws of the State of New York.

10. That at all times herein mentioned, Defendant THE CITY OF NEW YORK was and is a governmental subdivision of the State of New York.

11. That at all times herein mentioned, Defendant THE CITY OF NEW YORK is the public employer of Defendants New York City Police Department Officers CAPTAIN DEODAT URPRASAD, DEPUTY INSPECTOR JOHN D'ADAMO, CHIEF THOMAS PURTELL, INSPECTOR JOHN DANBERRY, SERGEANT JOHN RAJAN, LIEUTENANT ARIOLA, CAPTAIN NICOLE PAPAMICHAEL, DEPUTY CHIEF MCNAMARA, SERGEANT GEORGE EBRAHIM, INSPECTOR PAUL PIEKARSKI, CAPTAIN THOMAS TRAYNOR, LIEUTENANT FRANK BASENDELLO, LIEUTENANT JESUS ROMERO, and SERGEANT CLIFF THIELEKE and "JOHN DOES", names being fictitious intended to be New

York City Police Officers, individually and in their official capacities as New York City Police Officers.

12. That at all times herein mentioned, Defendant NEW YORK CITY POLICE DEPARTMENT is an agency of Defendant the City of New York, existing and operating by virtue of the laws of the State of New York and the City of New York for/with which Defendants CAPTAIN DEODAT URPRASAD, DEPUTY INSPECTOR JOHN D'ADAMO, CHIEF THOMAS PURTELL, INSPECTOR JOHN DANBERRY, SERGEANT JOHN RAJAN, LIEUTENANT ARIOLA, CAPTAIN NICOLE PAPAMICHAEL, DEPUTY CHIEF MCNAMARA, SERGEANT GEORGE EBRAHIM, INSPECTOR PAUL PIEKARSKI, CAPTAIN THOMAS TRAYNOR, LIEUTENANT FRANK BASENDELLO, LIEUTENANT JESUS ROMERO, and SERGEANT CLIFF THIELEKE and "JOHN DOES", names being fictitious intended to be New York City Police Officers, individually and in their official capacities as New York City Police Officers are agents, employees, licensees, servants, police officers, officers of the Defendants the City of New York and the New York City Police Department are employed and act under color of law.

13. That at all times herein mentioned, Defendants New York City Police Department Officers CAPTAIN DEODAT URPRASAD, DEPUTY INSPECTOR JOHN D'ADAMO, CHIEF THOMAS PURTELL, INSPECTOR JOHN DANBERRY, SERGEANT JOHN RAJAN, LIEUTENANT ARIOLA, CAPTAIN NICOLE PAPAMICHAEL, DEPUTY CHIEF MCNAMARA, SERGEANT GEORGE EBRAHIM, INSPECTOR PAUL PIEKARSKI, CAPTAIN THOMAS TRAYNOR, LIEUTENANT FRANK BASENDELLO, LIEUTENANT JESUS ROMERO, and SERGEANT CLIFF THIELEKE and "JOHN DOES", names being fictitious intended to be New York City Police Officers, individually and in their official

capacities as New York City Police Officers are agents, employees, licensees, servants, police officers, officers of the Defendants the City of New York and the New York City Police Department and, at all times herein mentioned, were/are acting within the scope of their employment and under the color of law.

14. Defendants New York City Police Department Officers CAPTAIN DEODAT URPRASAD, DEPUTY INSPECTOR JOHN D'ADAMO, CHIEF THOMAS PURTELL, INSPECTOR JOHN DANBERRY, SERGEANT JOHN RAJAN, LIEUTENANT ARIOLA, CAPTAIN NICOLE PAPAMICHAEL, DEPUTY CHIEF MCNAMARA, SERGEANT GEORGE EBRAHIM, INSPECTOR PAUL PIEKARSKI, CAPTAIN THOMAS TRAYNOR, LIEUTENANT FRANK BASENDELLO, LIEUTENANT JESUS ROMERO, and SERGEANT CLIFF THIELEKE and "JOHN DOES", names being fictitious intended to be New York City Police Officers, individually and in their official capacities as New York City Police Officers, each individually and in his/her respective official capacity, and as employees/agents of the Defendants the City of New York and New York City Police Department, and as Defendants' duly sworn police officers, agents, servants, employees of the City of New York and/or New York City Police Department, at all times herein mentioned, are agents, servants and/or employees of the Defendants the City of New York and the New York City Police Department and were acting in their respective individual capacity and/or in their respective official capacities as agents, servants and/or employees in their respective official capacity with all the actual and/or perceived/apparent authority granted, allotted, entrusted to them by the City of New York and/or New York City Police Department in accordance with their official duties, positions, ranks and titles as New York City Police Officers.

15. In addition to the facts alleged in the foregoing paragraphs and following paragraphs, the individually named Defendants herein in the following subparagraphs are sued in his/her individual and official capacity; acted under color of law and within the scope of his/her employment, to wit: under color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/or the City of New York:

- a. Defendants New York City Police Department Officers CAPTAIN DEODAT URPRASAD, DEPUTY INSPECTOR JOHN D'ADAMO, CHIEF THOMAS PURTELL, INSPECTOR JOHN DANBERRY, SERGEANT JOHN RAJAN, LIEUTENANT ARIOLA, CAPTAIN NICOLE PAPAMICHAEL, DEPUTY CHIEF MCNAMARA, SERGEANT GEORGE EBRAHIM, INSPECTOR PAUL PIEKARSKI, CAPTAIN THOMAS TRAYNOR, LIEUTENANT FRANK BASENDELLO, LIEUTENANT JESUS ROMERO, and SERGEANT CLIFF THIELEKE and "JOHN DOES", names being fictitious intended to be New York City Police Officers, were, at all relevant times, Police Officers with/of the New York City Police Department.

16. That at all times herein mentioned, Defendant the City of New York, owned, managed, controlled, maintained, trained, hired, retained, employed and/or supervised the Defendants the New York City Police Department and New York City Police Department Officers CAPTAIN DEODAT URPRASAD, DEPUTY INSPECTOR JOHN D'ADAMO, CHIEF THOMAS PURTELL, INSPECTOR JOHN DANBERRY, SERGEANT JOHN RAJAN, LIEUTENANT ARIOLA, CAPTAIN NICOLE PAPAMICHAEL, DEPUTY CHIEF MCNAMARA, SERGEANT GEORGE EBRAHIM, INSPECTOR PAUL PIEKARSKI, CAPTAIN THOMAS TRAYNOR, LIEUTENANT FRANK BASENDELLO, LIEUTENANT

JESUS ROMERO, and SERGEANT CLIFF THIELEKE and “JOHN DOES”, names being fictitious intended to be New York City Police Officers, individually and in their official capacities as New York City Police Officers.

17. Defendants New York City Police Department Officers CAPTAIN DEODAT URPRASAD, DEPUTY INSPECTOR JOHN D’ADAMO, CHIEF THOMAS PURTELL, INSPECTOR JOHN DANBERRY, SERGEANT JOHN RAJAN, LIEUTENANT ARIOLA, CAPTAIN NICOLE PAPAMICHAEL, DEPUTY CHIEF MCNAMARA, SERGEANT GEORGE EBRAHIM, INSPECTOR PAUL PIEKARSKI, CAPTAIN THOMAS TRAYNOR, LIEUTENANT FRANK BASENDELLO, LIEUTENANT JESUS ROMERO, and SERGEANT CLIFF THIELEKE and “JOHN DOES”, names being fictitious intended to be New York City Police Officers, individually and in their official capacities as New York City Police Officers, are agents, servants, licensees, police officers, officers and/or employees of Defendants who, at all times herein mentioned, acted in their individual capacities and/or acted within the scope of their employment and under the color of law.

18. Defendants and “JOHN DOES” and “JANE DOES”, names being fictitious intended to be officers/representatives/agents/servants of Defendants the City of New York, the New York City Police Department and/or New York City Police Department Advocates’ Office individually and in their official capacity and/or as agents, servants, employees in their respective official capacity with all the actual and/or perceived/apparent authority granted, allotted, entrusted to them by the City of New York and/or New York City Police Department in according with their official duties and titles.

FACTUAL AND GENERAL ALLEGATIONS

19. This is an action against Defendants to redress a pattern and practice of wrongful

and unlawful conduct including, but not limited to: unlawful disparate treatment, unlawful discrimination based upon race, ethnicity and/or national origin, unlawful hostile work environment, unlawful retaliation and/or unlawful constructive termination/forced resignation/retirement as well as related pendent state claims including, but not limited to, assault, battery, false imprisonment and related claims in violation of: Title VII of the Civil Rights Act of 1964, as amended by the Civil Rights Act of 1991, 42 U.S.C. Sections 1983, 1981, 1981(a), 2000, 2000(e), 2000(e)(3), 2000(e)-2(a)(I), New York Executive Law Art. 15 (NY Human Rights Law) New York State Human Rights Law Sections 290-297, the Administrative Code of the City of New York, the Constitution of the State of New York and the laws and the Constitution of the United States of America, denial of Plaintiff's State and Federal Constitutional Right to Equal Protection of the Law in violation of the 14th Amendment to the Constitution of the United States of America, denial of Plaintiff's right to be free from excessive force and/or free from cruel and unusual punishment in violation of the Fourth and Eighth Amendments of the U.S. Constitution and the loss of employment/salary/wages/title/position/job/rank and related income and benefits therefrom.

20. Prior to Plaintiff's unlawful constructive termination/forced resignation due to the unlawful conduct of the Defendants herein, Plaintiff Marco Trujillo was a Sergeant with the New York City Police Department and served in said NYPD for over twenty-two (22) years. He is a male Hispanic and is of Spanish/Hispanic/Latino ethnicity/race/national origin and of Dominican descent.

21. That from 2008 continuing to and through April 2010, Plaintiff was assigned to the Intelligence Division of the New York City Police Department.

22. That in or about 2010, Defendant Inspector John Danberry (Caucasian/white male), falsely accused Plaintiff of failing to follow search warrant protocols when same Defendant knew that the foregoing allegation against Plaintiff was without legal merit.

23. That in or about 2010, after being falsely accused by Defendant Danberry as and for the search warrant protocols, Plaintiff complained about said false accusation to Defendant Danbury and, in response to Plaintiff exercising his right to register complaints about the workplace, Defendant Danberry then falsely charged, filed charges, initiated departmental charges against Plaintiff charging Plaintiff and/or causing Plaintiff to be charged with departmental charges of transporting a prisoner in an unauthorized police vehicle. That, upon information and belief, Defendant Danberry notified the NYPD and/or the NYPD's Advocate's Office of said Defendant's false allegations about Plaintiff and thereby issued and/or caused to be issued by Defendant NYPD, official Charges and Specifications against Plaintiff for same.

24. That in or about 2010, in response to Defendant Danberry's false allegations/charges against him of allegedly transporting a prisoner in an unauthorized vehicle, Plaintiff notified Defendant Danberry and the NYPD that, in connection with the assignment he was working with/for the federal government, of which Defendant Danberry and Defendant NYPD was aware, the vehicle he used to transport the prisoner was an authorized vehicle issued/assigned to him in connection with said assignment and was an authorized vehicle for transport.

25. Despite Defendants Danberry and the NYPD knowing that said vehicle was an authorized vehicle for Plaintiff to transport a prisoner, same Defendants, in continued unlawful retaliation against Plaintiff for registering complaints about/against Defendant Danberry, continued to prosecute Plaintiff on/for the foregoing Charges and Specifications.

26. That Plaintiff, forced to defend himself against these baseless charges and specifications, exercised his right to proceed to trial where Plaintiff was found 'NOT GUILTY' of Defendant Danberry's false charges against him by the NYPD Trial Commissioner as the NYPD Trial Commissioner correctly determined that the vehicle in question was assigned to Plaintiff by the federal government in conjunction with and connection to the nature of his assignment and, as such, the vehicle in question was, in fact, an authorized vehicle for prisoner transport.

27. That shortly after Plaintiff was found 'Not Guilty' of Defendant Danberry's and the NYPD's foregoing meritless and baseless charges and specifications against him, Defendants Danberry and the NYPD, in their continued pattern and practice of unlawful retaliation against Plaintiff, in or about 2010, forcibly transferred Plaintiff out of the Intelligence Division to the 13th Precinct.

28. That in furtherance of their unlawful retaliation against Plaintiff, and in creating, fostering and perpetuating an unlawful hostile work environment against Plaintiff, Defendants Danberry and the NYPD, despite Plaintiff being found 'Not Guilty' of the foregoing charges, maintained and left same charges to remain on Plaintiff's NYPD departmental records. That, upon information and belief, Defendant NYPD's practice/policy/custom, as demonstrated by the treatment of the non-minority officers, is that once an officer is found 'Not Guilty' of any charges and/or specifications, the NYPD, its agents, servants and/or employees are to remove said charges/specifications from the officer's NYPD departmental records and their practice/policy/custom is not to allow same to remain in an officer's NYPD departmental records as they did with/to Plaintiff herein.

29. That, in addition to Plaintiff's own subjective belief and opinion as to Defendant Danberry transferring him out of the Intelligence Division in unlawful retaliation and hostile

work environment, Plaintiff was told/advised by a Lieutenant Miller of the NYPD that Defendant Danberry transferred Plaintiff out of the Intelligence Division because Defendant Danberry hated Plaintiff and because Defendant Danberry was retaliating against Plaintiff for having complained about Defendant Danberry and to further retaliate against Plaintiff and to punish Plaintiff for having been found 'Not Guilty' of Defendants Danberry and the NYPD's foregoing meritless and baseless charges.

30. That the 2010 retaliatory transfer of the Plaintiff by Defendants Danberry and the NYPD to the 13th Precinct was a materially adverse employment action against Plaintiff as same was a demotion for Plaintiff given Plaintiff's seniority and activity numbers. By Defendants Danberry and NYPD intentionally and forcibly transferring Plaintiff to the 13th Precinct, Defendant NYPD forced Plaintiff to work day tours instead of night tours which, in turn, directly and proximately reduced Plaintiff's income/salary by approximately more than ten (10) percent which said Defendants knew Plaintiff would suffer as a result of same.

31. That Plaintiff believes this forced 2010 transfer to the 13th precinct was in retaliation against him by Defendants Danberry and the NYPD for Plaintiff registering complaints about Defendant Danberry and for Plaintiff being found 'Not Guilty' of Defendants Danberry's and NYPD's baseless charges against him. That said Defendants knew that Plaintiff would suffer a reduction of salary/income as a result of the retaliatory transfer and did so with the intent to further retaliate against/punish Plaintiff.

32. That, as a direct and proximate result of the Defendants Danberry and NYPD forcibly transferring Plaintiff to the 13th precinct in 2010, Plaintiff was forced/compelled to suffer and sustain the reduction of salary/income while at the 13th precinct for approximately nine (9) months – upon information and belief, the longest day tour that Defendant NYPD ever

assigned to any officer in that squad as there were officers in that squad at the 13th precinct for seven (7) years who, upon information and belief, [n]ever worked a day tour for nine (9) months as Plaintiff was forced to do herein.

33. That from on or about April 2010 through on or about June 2012, Plaintiff was assigned as one of the patrol supervisors for which he worked several different assignments.

34. That in or about December 2011, Defendant Deputy Inspector John D'Adamo (Caucasian/White male) attempted to coerce/force Plaintiff to 'voluntarily' transfer into Patrol Borough Manhattan South Anti-Crime Unit and, upon information and belief, Defendant D'Adamo continued to attempt to force Plaintiff to 'voluntarily' transfer to said Unit from in or about December 2011 to in or about June 2012.

35. That every time that Defendant D'Adamo attempted to force Plaintiff to 'voluntarily' transfer to the Manhattan South Anti-Crime Unit, Plaintiff refused to 'voluntarily' transfer and refused same directly to Defendant D'Adamo. That in response to Defendant D'Adamo's persistence in forcing Plaintiff to transfer to Manhattan South, and in particular to the Conditions Unit of Manhattan South, Plaintiff registered a complaint to Defendant D'Adamo telling him that the Conditions Unit had a high number of Civilian Complaint Review Board Complaints, about police misconduct/unlawful conduct made against the Unit and the Units' officers, and that he (Plaintiff) did not wish to work there. In response to Plaintiff's complaint, Defendant D'Adamo threatened Plaintiff that Plaintiff had to work there whether Plaintiff liked it or not.

36. That, upon information and belief, Defendant D'Adamo, in retaliation against Plaintiff for refusing the 'voluntary' transfer that Defendant D'Adamo was attempting to force

upon Plaintiff, complained about Plaintiff and Plaintiff's refusal of the forced 'voluntary' transfer to Defendant Chief Thomas Purtell.

37. That in or about June 2012, Defendants D'Adamo and Defendant Chief Thomas Purtell (Caucasian/White male), forcibly transferred Plaintiff (involuntary transfer) from the 13th Precinct to the Patrol Borough Manhattan South Anti-Crime Unit as Defendant Purtell wanted to improve the Unit's 'numbers' and wanted Plaintiff to achieve same for him.

38. That in or about June 2012, Plaintiff complained about the forced transfer to, at that time, NYPD Lieutenant Harrington who, upon information and belief, is now Captain Harrington, and who was, at that time, one of the supervisors at the Conditions Unit at Manhattan South Anti-Crime as Plaintiff did not want to work in the Conditions Team. That Captain Harrington advised Plaintiff that if Plaintiff did not accept the transfer, it would be treated as an insult to Defendant Purtell which would not bode well for Plaintiff's career. Having been advised of the foregoing, Plaintiff accepted the transfer.

39. That as a direct and proximate result of the Defendants D'Adamo and Purtell forcing/compelling Plaintiff to transfer to Manhattan South, and, in particular, to the Conditions Unit, Plaintiff suffered and sustained an economic loss in salary/income of approximately more than Thirty Thousand Dollars (\$30,000.00).

40. That in or about June 2012, when Plaintiff was forcibly transferred to the Patrol Borough Manhattan South Anti-Crime Unit, marked the first time that Plaintiff was to work with Defendant Sergeant John Rajan (South Asian male).

41. That upon Plaintiff's forced transfer to Manhattan South in or about June 2012, Defendant Rajan made his dislike of and racist/discriminatory attitude/beliefs against Hispanics/Latinos clear to Plaintiff as Defendant Rajan knew Plaintiff to be Hispanic/Latino.

42. That upon information and belief, Defendant Rajan was friendly with, connected with and protected by the upper tier of NYPD supervisors/officers and was known to do favors for them and, in return, some of the NYPD supervisors, including the individually named Defendants herein, turned a blind eye to Defendant Rajan's unlawful conduct/misconduct/violent behaviors and excessive force.

43. That from in or about June 2012 to on or about April 2013, Defendant Rajan, within the scope of his employment and acting under color of law, without the authority, permission or consent by Plaintiff, and without authority pursuant to the rules, codes, regulations and/or policies of the New York City Police Department, in an abuse of Defendant Rajan's power, trust, authority, position, title and rank as a NYPD officer and in furtherance of Defendant Rajan's unlawful discrimination against Hispanics/Latinos within the NYPD, unlawfully accessed Plaintiff's official NYPD department records and unlawfully disclosed Plaintiff's information contained therein to others in the Patrol Borough Manhattan South Anti-Crime Unit including the nature of Plaintiff's sensitive federal government assignment while at the Intelligence Division -- a disclosure that could jeopardize Plaintiff's safety and life.

44. That from in or about June 2012 to on or about April 2013, Plaintiff repeatedly exercised his right to register complaints about the workplace and reported Defendant Rajan's foregoing misconduct/unlawful conduct to the entire NYPD chain of command assigned to Patrol Borough Manhattan South up to and including registering complaints to Defendant Purtell as well as to Defendants Romero, Traynor, D'Adamo, Piekarski and to a NYPD Lieutenant Mendez, but, to no avail as Defendants took no such remedial action in response to Plaintiff's repeated complaints. In each such registered complaint, Plaintiff repeatedly requested that Defendants Purtell, Romero, Traynor, D'Adamo, Piekarski, as well as NYPD Lieutenant

Mendez, and the NYPD at large, conduct an investigation of Defendant Rajan and into his official misconduct and unlawful/discriminatory actions, conduct and behaviors, including his acts of violence and excessive force, but, to no avail as Defendants took no such remedial or corrective action in response to Plaintiff's repeated complaints.

45. That from in or about June 2012 to on or about April 2013, Plaintiff also complained to the foregoing NYPD chain of command at Manhattan South about Defendant Sergeant Rajan's history of excessive force, violent acts, conduct and/or behavior towards/against others including, but not limited to: violence/excessive force against other officers and against those citizens who Defendant Rajan stops, detains, arrests and/or imprisons; thereby causing them to sustain physical injury therefrom and thereby exposing the NYPD and its officers such as Plaintiff who work with Defendant Rajan to unnecessary and needless excessive force, brutality, assault, battery and other complaints being made for physical injuries being sustained at the hands of Defendant Rajan as well as for Defendant Rajan's violation of citizens' civil rights by, including but not limited to, targeting poor, Black/African American and/or Hispanic citizens. That Plaintiff's complaints were futile as these Defendants again took no remedial or corrective action in response to Plaintiff's complaints herein.

46. That the Defendants Purtell, Romero, Traynor, D'Adamo, Piekarski, as well as NYPD Lieutenant Mendez, despite receiving Plaintiff's repeated complaints about the foregoing, and despite knowing of Defendant Rajan's unlawful, abusive, misconduct, official misconduct and violent conduct/acts/behavior, took no remedial or corrective measures to stop same, conducted no investigation of Plaintiff's repeated complaints and failed to initiate any disciplinary action against Defendant Rajan. Rather, despite knowing of all of the foregoing, Defendants allowed same to continue and facilitated, fostered and/or perpetuated same allowing

Defendant Rajan's unlawful conduct to continue and to become the NYPD's practice and custom to allow same to continue. The foregoing Defendants, and the Defendant the NYPD at large, allowed Defendant Rajan to be protected by the upper tier supervisors of the NYPD and allowed him to continue his employment as an NYPD officer and to put the safety, health and well being of the other NYPD officers, including Plaintiff herein, as well as that of the citizens of the City of New York, in risk and jeopardy of physical harm and injury at the hands of Defendant Rajan.

47. That, in particular, one of Plaintiff's repeated complaints about Defendant Rajan was made on or about August 21, 2012 to Defendant Captain Thomas Traynor (Caucasian Male) in which Plaintiff complained to Defendant Traynor about Defendant Rajan's history of violent conduct, as well as complaining about Defendant Rajan's unlawful accessing of Plaintiff's personal NYPD department records and disclosing the contents of same to others in the department. In same August 2012 complaint to Defendant Traynor, Plaintiff further advised Defendant Traynor that other members of the service/officers of the NYPD did not want to work with Defendant Rajan because of Defendant Rajan's unlawful and violent conduct, actions and behavior that placed their lives, safety and careers in jeopardy.

48. That on August 21, 2012, in response to Plaintiff's August 21, 2012 complaint to Defendant Traynor about Defendant Rajan, Defendant Traynor, in furtherance of the NYPD's supervisors' continued protection of Defendant Rajan, told Plaintiff that he, Defendant Traynor, ordered Defendant Rajan to run a P.E.P.E.R. on Plaintiff to access Plaintiff's personal NYPD departmental records.

49. That Plaintiff believes that Defendant Traynor is lying to Plaintiff on August 21, 2012, when he told Plaintiff that he ordered Defendant Rajan to run the P.E.P.E.R. on Plaintiff in the Defendant's furthered effort, while acting under color of law, to protect and shield Defendant

Rajan form disciplinary action by the NYPD as Defendant Rajan is well connected to the superiors in the chain of command (including Defendant Traynor) as he is a member of the Desi Society within the NYPD and he does many favors for the superiors within the chain of command (including Defendant Traynor) and, in return for same, acting under color of law, the Defendants cover up, lie, protect, deny and shield Defendant Rajan from adverse action, disciplinary action, being brought up on charges and the like despite knowing of Defendant Rajan's unlawful conduct. If, in fact Defendant did order Defendant Rajan to run the P.E.P.E.R. on Plaintiff, then Defendant Traynor, who is close friends with Defendant Rajan, would be in violation of NYPD departmental policy and, to date, no adverse action or disciplinary action has been taken against Defendant Traynor for same nor have Defendants taken any corrective or remedial measures/action against Defendant Rajan and/or Traynor therein.

50. That on or about February 21, 2013, during a meeting at Patrol Borough Manhattan South with Defendants' Purtell, Piekarski (Caucasian Male) and Basendello, Plaintiff again made and registered complaints to these foregoing Defendants about Defendant Rajan's unlawful and violent conduct, actions and behavior and how Defendant Rajan unlawfully accessed and disclosed Plaintiff's personal NYPD departmental records and personal information contained therein but, to no avail as these Defendants failed to take any corrective or remedial action against/about Defendant Rajan in response to Plaintiff's complaints.

51. That within less than two (2) months after Plaintiff's foregoing complaints made on February 21, 2013 to Defendants Purtell, Piekarski (Caucasian Male) and Basendello about Defendant Rajan in response to which these Defendants also took no remedial or corrective action, on or about April 17, 2013, while inside of Patrol Borough Manhattan South, Plaintiff again registered/made complaints about Defendant Rajan to Defendants Piekarski and D'Adamo

and further told Defendants Piekarski and D'Adamo that Plaintiff did not feel safe or comfortable working with Defendant Rajan given Defendant Rajan's unlawful and violent actions, conduct and behavior, including Defendant Rajan having assaulted/used excessive force against a female detainee.

52. That on April 17, 2013, in response to Plaintiff's foregoing complaints about Defendant Rajan, Defendants Piekarski and D'Adamo took no remedial or corrective action and failed to take any action in response to same.

53. That on or about April 18, 2013, while Plaintiff was exiting Patrol Borough Manhattan South, without reason or provocation or any conduct whatsoever on the part of Plaintiff herein, Defendant Rajan, while he was on duty, acting within the scope of his employment, and acting under color of law, physically attacked/assaulted Plaintiff requiring two police officers who witnessed same to intercede and prevent Defendant Rajan, by restraining him, from attacking/assaulting/using excessive force against Plaintiff again. After breaking free from their restraint, on same date of April 18, 2013, Defendant Rajan then threatened Plaintiff again including, but not limited to, threatening the use of force/violence against him and told Plaintiff that he (Rajan) was told/made aware by Defendants, including, upon information and belief, by Defendants D'Adamo, Piekarski, Traynor, Romero and/or Purtell, that Plaintiff made/registered complaints to them about Defendant Rajan and about Defendant Rajan's unlawful/violent conduct, actions and behavior and that Defendant Rajan attacked Plaintiff on April 18, 2013 because of/in retaliation for same and that he (Rajan) would, in sum and substance, 'get' Plaintiff again.

54. That Defendant Lieutenant Jesus Romero (Hispanic Male), who at the time of Defendant Rajan's physical assault on/of Plaintiff on or about April 18, 2013, was the Integrity

Control Officer, was aware of and knew of Defendant Rajan's misconduct/unlawful conduct of attacking/assaulting/using excessive force against Plaintiff on April 18, 2013 but, despite same, while acting within the scope of his employment and acting under color of law, and in furtherance of Defendants' continued course of action to protect Defendant Rajan and to cover up his unlawful/hostile/discriminatory/retaliatory conduct, Defendant Romero did not discipline Defendant Rajan, did not take any corrective or remedial action against him, did not report Defendant Rajan to the chain of command or to the NYPD's Advocate's Office, did not report him to Defendant Purtell nor did he notify the Internal Affairs Bureau of Defendant Rajan's unlawful conduct/misconduct/assault/excessive force against Plaintiff despite Plaintiff registering complaints to Defendants Purtell, Romero, Traynor and Piekarski about same as Plaintiff was the victim of Defendant Rajan's assault/excessive force and wished charges to be brought against Defendant Rajan for same.

55. That despite Plaintiff's complaints about Defendant Rajan's April 18, 2013 physical attack/assault/excessive force against him, and despite two other police officers witnessing same, Defendants Purtell, Romero, Traynor and Piekarski took no remedial or corrective action against Defendant Rajan in response to same.

56. That, as the foregoing Defendants failed to take any remedial action or corrective measures, or disciplinary action, against Defendant Rajan for his unlawful assault/excessive force committed against Plaintiff on April 18, 2013, and in retaliation against Plaintiff for registering a complaint about same, these Defendants allowed and permitted Defendant Rajan to continue his employment without being held accountable for the April 18, 2013 attack on Plaintiff and allowed Defendant Rajan to be in the physical presence of Plaintiff; thereby creating the dangerous and hazardous working conditions/environment for Plaintiff to be forced

to work with Defendant Rajan affording Defendant Rajan the time and opportunity to commit such unlawful act against Plaintiff and Plaintiff's life/safety again.

57. That on or about April 19, 2013, the very next day after Defendant attacked/assaulted Plaintiff on or about April 18, 2013, as Defendants took no remedial, corrective or disciplinary action against Defendant Rajan for the April 18, 2013 attack on Plaintiff and, despite knowing of same, allowed Defendant Rajan to continue his employment, while Plaintiff was inside of Patrol Borough Manhattan South, Defendant Rajan again initiated another physical confrontation and attack on Plaintiff. In furtherance of this attack/assault/use of excessive force against Plaintiff Defendant Rajan, while acting within the scope of his employment, while he was on duty and acting under color of law, ordered the subordinate officers out of the Anti Crime Office. As the acting supervisor of the Unit, Plaintiff ordered the officers to suit up and prepare to go out on patrol. While Plaintiff was inside the room/office that housed his locker and uniform equipment, an office/room that Defendant Rajan had no authority to be in, and while Plaintiff was retrieving his equipment from his locker, was facing his locker and had his back to the door, Defendant Rajan unlawfully and without permission, consent or authority, and without any provocation, reason or conduct by Plaintiff whatsoever, entered Plaintiff's office and from behind, attacked, assaulted, battered, choked, hit, struck, pushed, falsely imprisoned and otherwise was violent and used excessive force against Plaintiff herein.

58. That NYPD Officers Traci McLaughlin (Female), Eric Ahlfeld and Michael Bellagamba were present and all had to physically restrain and tried to remove Defendant Rajan from Plaintiff's neck in order to try and stop Defendant Rajan from continuing to choke Plaintiff. In response to the foregoing Officers' attempt to restrain and stop Defendant Rajan from

continuing to choke and attack/assault/use excessive force against Plaintiff, Defendant Rajan then physically pushed NYPD Officer McLaughlin.

59. After Plaintiff was freed from Defendant Rajan's chokehold, assault, battery and excessive force, Defendant Rajan immediately ran to his friend, Defendant Deodat Urprasad (South Asian Male), the Commanding Officer of the Patrol Borough Manhattan South Investigations Unit -- the same unit where Defendant Rajan improperly, unlawfully and without authorization, permission or consent, accessed Plaintiff's official department records and disclosed same information to other Officers.

60. That both Defendants Rajan and Urprasad are members of the NYPD Desi Society, the fraternal organization that represents South-Asian Officers and both Defendants had previously made it known that they do not like Hispanics/Latinos including Plaintiff herein.

61. That on the same day of this second attack by Defendant Rajan, on April 19, 2013, Plaintiff informed, made/registered a complaint with and/or put Defendants Purtell, D'Adamo, Traynor, Romero, Piekarski and/or the NYPD at large on notice about Defendant Rajan's unlawful attack/assault/choking/battery/excessive force committed against him on or about April 19, 2013. In particular, Plaintiff notified Defendant D'Adamo about Defendant Rajan's unlawful attack/assault/choking/battery/excessive force committed against him to which Defendant D'Adamo told Plaintiff that he was going to notify the Duty Captain about same. Plaintiff further complained to Defendant D'Adamo of the physical pain/injuries that he was suffering from as a result of Defendant Rajan's unlawful attack/assault/battery/excessive force including, but not limited to: pain in his neck, upper back and left shoulder; pain and strangulation marks around Plaintiff's neck, difficulty breathing, choking, the feeling that something "popped" out of his left shoulder and a tear in and/or broken left shoulder.

62. As a direct and proximate result of Defendant Rajan's unlawful assault/attack/choking/battery/excessive force committed against him, Plaintiff was transported to Bellevue Hospital where he was treated.

63. On or about April 20, 2013, upon Plaintiff's arrival back at the command after being assaulted/attacked/battered/choked/victim of excessive force by Defendant Rajan, and after being treated at Bellevue Hospital for same, Plaintiff, heavily medicated for his injuries sustained therefrom, was met by Defendant Sergeant Benevolent Association's Manhattan North Delegate Sergeant Cliff Thieleke (Caucasian Male) to discuss with him the incidents of April 18-April 19, 2013 involving Defendant Rajan.

64. That on April 20, 2013, Plaintiff also complained to Defendant Thieleke about Defendant Rajan's two attacks/assaults/uses of excessive force against him on April 18, 2013 and on April 19, 2013 and further complained about how Plaintiff had previously and repeatedly complained to Defendants Purtell, Traynor, Romero, D'Adamo, Piekarski and others about Defendant Rajan's unlawful, violent and discriminatory conduct/misconduct/behavior and that the Defendants failed to take any action, investigation or disciplinary action against Defendant Rajan.

65. That on April 20, 2013, three (3) days after Plaintiff's April 17, 2013 complaints about Defendant Rajan, two (2) days after Plaintiff's April 19, 2013 complaints about Defendant Rajan and one (1) day after Plaintiff's April 19, 2013 complaints about Defendant Rajan, in furtherance of Defendants' unlawful retaliation against and hostile/discriminatory conduct against Plaintiff, and in direct retaliation to Plaintiff's April 17, 2013, April 18, 2013 and April 19, 2013 complaints about Defendant Rajan and Defendant Rajan's unlawful assault/attack/use of excessive force against Plaintiff on said dates, Defendant NYPD, through its agents, servants

and employees, including, but not limited to Defendants Purtell, Traynor, Romero, D'Adamo, Piekarski and/or Thieleke, made Plaintiff the subject of a GO 15 investigation regarding said attacks even though the Defendants herein knew that Defendant Rajan attacked Plaintiff, that Plaintiff was the victim of same and not any aggressor and that other officers witnessed same. That as a subject of such GO 15 investigation, Plaintiff was put on notice by Defendants that he, as a [v]ictim, was going to be brought up on departmental charges for Defendant Rajan's attacks/assaults/uses of excessive force against him instead of Defendant Rajan being the subject of such an investigation and Plaintiff the complaining witness/victim.

66. That during the foregoing GO15 by Defendants, as Plaintiff was going to be questioned regarding same, Plaintiff requested an attorney but was unlawfully denied/refused same by Defendants, their agents, servants and/or employees. Instead, during the questioning by/with Defendant Thieleke, Defendant Thieleke, acting under the color of law, acting within the scope of his employment with Defendants and acting in concert with the other Defendants herein, in making Plaintiff the subject of the GO 15 investigation, and in the Defendants' continued and furthered efforts to protect Defendant Rajan, cover up Defendant Rajan's unlawful and violent conduct and to prevent any adverse and/or disciplinary actions being taken against Defendant Rajan, told Plaintiff [n]ot to report/notify/advise or even mention that Defendant Rajan attacked/assaulted/choked/strangled him/used excessive force against him on April 18, 2013 and on April 19, 2013.

67. That on April 20, 2013, acting under color of law, within the scope of his employment with Defendants and in concert with the other Defendants herein, and in the Defendants' continued and furthered efforts to protect Defendant Rajan, cover up Defendant Rajan's unlawful and violent conduct and to prevent any adverse and/or disciplinary actions

being taken against Defendant Rajan, Defendant Thieleke told/advised Plaintiff to lie about Defendant Rajan's attack/assault/choking/battery/excessive force and further advised/threatened Plaintiff that if Plaintiff did not lie about same, Plaintiff would be suspended and arrested by Defendants. Defendant Thieleke further threatened Plaintiff that he Defendant Thieleke has worked with Defendant McNamara and the only way Plaintiff will not be suspended is if Plaintiff does not notify/report or tell anyone about Defendant Rajan's choking/strangulation of Plaintiff that occurred on April 19, 2013.

68. That as a victim of assault/excessive force by Defendant Rajan, Plaintiff refused to lie and told Defendant Thieleke that he would not lie about Defendant Rajan choking/strangling/assaulting/attacking/battering/using excessive force against Plaintiff. Despite Defendant Rajan's unlawful and criminal conduct against Plaintiff, and despite the Defendants knowing of same, in retaliation against Plaintiff for not lying about the choking/strangulation by Defendant Rajan, the Defendants not only did not take any remedial/corrective actions against Defendant Rajan but, further, did not refer/report the matter to Internal Affairs Bureau as required by NYPD department policy, did not arrest Defendant Rajan, did not suspend Defendant Rajan, nor take any disciplinary action against him for same but, rather, on April 20, 2013 to on or about Plaintiff's constructive termination on or about December 1, 2013, proceeded with the GO 15 investigation against Plaintiff to then commence/file charges against Plaintiff and prosecute him on departmental charges/specifications-- all the while knowing that Plaintiff was the victim and Defendant Rajan was the perpetrator.

69. In further retaliation against Plaintiff and in furtherance of Defendants' acting under color of law and in concert with the other, in efforts to protect/shield/cover up and/or prevent Defendant Rajan from being brought up on charges (criminal and/or departmental),

being suspended and/or having any disciplinary action taken against him for the unlawful and criminal acts committed against Plaintiff on or about April 19, 2013, Defendants, in an intentional violation of NYPD departmental policy, compelled/forced Plaintiff, on April 20, 2013, to undergo questioning by Defendants without an attorney and while Plaintiff was under medication that he was taking for the injuries caused by Defendant Rajan; thereby intentionally acting under the color of law and in concert with the other to lessen/mitigate/avoid the adverse/disciplinary/criminal consequences to/for Defendant Rajan and depriving Plaintiff of Plaintiff's rights and further damaging/undermining Plaintiff's rights to pursue a criminal arrest and prosecution of Defendant Rajan therefor. The foregoing was ordered/implemented/conducted/put in place by Defendants Purtell, McNamara, Piekarski, and Papamichael (Caucasian Female).

70. That Defendants Purtell, McNamara, Piekarski, and Papamichael, despite having knowledge of prior incidents of police misconduct, have facilitated, fostered and perpetuated the NYPD's practice and custom of covering up similar instances of police misconduct in the past including, but not limited to, prior incidents of police misconduct of/by Defendant Rajan.

71. That in furtherance of Defendants' unlawful, retaliatory, discriminatory and hostile work environment against Plaintiff, Defendants Urprasad, Ariola (Caucasian Male), and Ebrahim (Caucasian Male) from on or about April 20, 2013 to on or about December 1, 2013, intentionally violated NYPD department policy in their undertaking/conducting of the criminal investigation regarding Defendant Rajan's assault/attack/battery/choking and use of violent excessive force against Plaintiff herein. That these Defendants did the foregoing in concert with the other and acting under color of law in furtherance of the unlawful retaliation against Plaintiff and in furtherance of Defendants' efforts to shield/protect Defendant Rajan and to cover up/deny

and allow to go unpunished and unanswered for, Defendant Rajan's criminal, unlawful and departmental misconduct, actions, conduct and behavior committed against Plaintiff herein.

72. That during the Defendants' purported investigation of Defendant Rajan attacking/assaulting/battering/choking/excessive force against Plaintiff, and, in particular during the Defendants' interview/questioning of Plaintiff, Defendant Papamichael, on or about April 20, 2013, three (3) days after Plaintiff's April 17, 2013 complaints about Defendant Rajan, two (2) days after Plaintiff's April 19, 2013 complaints about Defendant Rajan and one (1) day after Plaintiff's April 19, 2013 complaints about Defendant Rajan, despite knowing that Plaintiff was, among other things, choked/strangled by Defendant Rajan around/at Plaintiff's neck, unlawfully/inappropriately and intentionally, without Plaintiff's consent/permission/authority, grabbed Plaintiff around his neck in efforts to simulate the attack/choking of Plaintiff by Defendant Rajan all the while questioning Plaintiff's truthfulness about his claims even though she had the physical and medical evidence, as well as the names of the police officers who were witnesses to same, while she simultaneously bragged about her own skill in martial arts.

73. In retaliation against Plaintiff for not lying about Defendant Rajan choking/strangling him, and in furtherance of Defendants acting under color of law and in concert with the other to protect/shield Defendant Rajan and to prevent any adverse/criminal/disciplinary charges/actions against Defendant Rajan, Defendants, including Defendants NYPD, Purtell, D'Adamo, Piekarski, McNamara, Papamichael, Urprasad, Ariola, Ebrahim and/or Thieleke, knowing that Plaintiff was the victim of a crime committed against him by Defendant Rajan, placed Plaintiff on or about April 20, 2013, three (3) days after Plaintiff's April 17, 2013 complaints about Defendant Rajan, two (2) days after Plaintiff's April 19, 2013 complaints about Defendant Rajan and one (1) day after Plaintiff's April 19, 2013

complaints about Defendant Rajan, on “Modified” Duty/Assignment as a punishment and adverse employment action against Plaintiff as same is a restriction/limitation of Plaintiff’s performance of duty; brought Plaintiff, and not Defendant Rajan on charges of being in a physical altercation and transferred him to another Unit (VIPER) as a punishment/adverse employment action as Plaintiff’s duty at VIPER caused him to lose any overtime duty and overtime salary/income as a direct result from same.

74. That Defendant Urprasad, friend of Defendant Rajan, brought the charges against Plaintiff and conducted the investigation which should have been performed by NYPD’s IAB, not Defendant Urprasad.

75. That while Plaintiff was brought up on charges, placed on “Modified” duty and transferred to VIPER Unit by Defendants from on or about April 20, 2013 to on or about December 1, 2013, thereby placing Plaintiff on restricted duty and causing him to lose overtime income/salary, the Defendants, in direct contrast, transferred Defendant Rajan, despite being the perpetrator of the crime against Plaintiff, to another Unit where Defendant Rajan gained overtime duty and income; thereby disparately treating, unlawfully retaliating against and unlawfully discriminating against Plaintiff because of his race, national origin/ethnicity and in retaliation for Plaintiff’s repeated complaints about Defendant Rajan and Rajan’s violent and unlawful conduct.

76. That Defendants Purtell, D’Adamo, McNamara, Piekarski, D’Adamo, Papamichael, Urprasad, Ariola, Ebrahim and/or Thieleke, acting under color of law and in concert with the other, intentionally failed to notify NYPD’s OEEA Office and/or NYPD’s Internal Affairs Bureau about any of the Plaintiff’s complaints about Defendant Rajan or about

Defendant Rajan's unlawful, criminal and violent attack/assault/battery/choking/strangulation/use of excessive force against Plaintiff.

77. That as a direct and proximate result of Defendant Rajan's unlawful, criminal and violent attack/assault/battery/choking/strangulation/use of excessive force against Plaintiff on or about April 18, 2013 and April 19, 2013, Plaintiff has required emergency medical care/treatment and continued medical care and treatment including, but not limited to: surgery for/on his left shoulder/arm, post surgery treatment and required medication including, but not limited to: Percocet and sleeping pills.

78. That as a direct and proximate result of Defendant Rajan's unlawful and criminal attack/assault/battery/choking/use of excessive and unwarranted force against the Plaintiff, Plaintiff was out from duty for the injuries he sustained therefrom, including, but not limited to, the broken left shoulder and subsequent surgery therefor, and, as a result of same, Plaintiff lost his overtime duty income and night shift differential from on or about April 19, 2013 to on or about December 1, 2013 when Plaintiff was forced to resign/retire/constructively terminated; thereby causing Plaintiff to sustain an economic loss of loss of income of approximately more than Forty Thousand Dollars (\$40,000.00) from December 1, 2013 to present date.

79. In addition to the incidents, occurrences, conduct, acts and/or omissions/failures of/by the Defendants stated and set forth above, Plaintiff consistently and repeatedly complained to the aforementioned Defendants, including to Defendant D'Adamo while Plaintiff was assigned to the Intelligence Division, that the Defendants unlawfully and disparately treated minority officers, and in particular Hispanic officers, as compared to their white/Caucasian counterparts who received preferential and better treatment by/with the Defendants. In response to Plaintiff's complaints about the unlawful disparate treatment by Defendants to minority and,

in particular, Hispanic officers, instead of noting or reporting his complaints or taking any remedial/corrective action or investigation, Defendant D'Adamo often told Plaintiff that Plaintiff was a "fictitious Hispanic" who did not speak Spanish fluently and was a "fake" Hispanic; thereby creating, facilitating and fostering an unlawful hostile work environment against Plaintiff and discriminating against Plaintiff because of his race, national origin/ethnicity.

80. That in further discrimination, hostile work environment and unlawful retaliation against Plaintiff, and in furtherance of the Defendants' unlawful cover up of Defendant Rajan's criminal and unlawful assault of Plaintiff, Defendants, on or about July 8, 2013, less than three months after Plaintiff's April 17, 2013, April 18, 2013 and April 19, 2013 complaints about Defendant Rajan and Defendant Rjan's attacks/assaults/excessive force used by him against Plaintiff during which Defendant Rajan choked the Plaintiff, filed official NYPD Departmental specifications and charges against Plaintiff for allegedly engaging in a physical altercation with Defendant Rajan when Defendants knew Defendant Rajan was the aggressor and attacked/choked and assaulted Plaintiff from behind, injuring Plaintiff, that Plaintiff was the victim and not the aggressor, that Plaintiff had made previous complaints about Defendant Rajan and his unlawful and violent behavior and that other officers witnessed Defendant Rajan attack/assault/use excessive force against Plaintiff. In continued and further unlawful discrimination, retaliation, and hostile work environment, and in furtherance of the Defendants' practice and custom of covering up police misconduct, and in particular, the misconduct of Defendant Rajan and his unlawful and criminal assault upon Plaintiff, Defendants again modified Plaintiff's duty on or about July 9, 2013, less than three months after Plaintiff's April 17, 2013, April 18, 2013 and April 19, 2013 complaints about Defendant Rajan and Defendant Rjan's attacks/assaults/excessive force used by him against Plaintiff during which Defendant

Rajan choked the Plaintiff, and not only took away his badge and weapon, but also took the legally and lawfully possessed firearms that Plaintiff lawfully possessed in his home.

81. That these charges against and modification of Plaintiff on or about July 8, 2013 and July 9, 2013, respectively, were unlawfully filed and conducted beyond the time required as per the NYPD patrol guide as more than 30 days had transpired from when Plaintiff was forced by Defendants to tender his resignation/constructively terminated, which he did on or about May 19, 2013 and, as per the Defendants' own rules, codes laws and regulations, any specifications or charges against someone who has tendered their resignation must be filed within 30 days of the date of resignation. Here, the July 8, 2013 filing of specifications and charges against Plaintiff were unlawfully well beyond the 30 days. The Defendants did so herein with the malicious intent to have charges pending against Plaintiff when he retired and/or was forced/compelled to resign/constructive termination, so that Defendants could stamp his retiree ID as "non weapons approved" and further unlawfully retaliate against him.

82. That while Plaintiff was out on sick leave due to the serious physical injuries caused by Defendant Rajan, from on or about April 19, 2013 to on or about December 1, 2013, Defendant NYPD by and through its agents, servants and/or employees including, but not limited to Defendants Purtell, D'Adamo, McNamara, Piekarski, D'Adamo, Papamichael, Urprasad, Ariola, Ebrahim and/or Thieleke, unlawfully and continuously harassed Plaintiff. Defendant NYPD had agents/employees/officers visit Plaintiff's home while he was out on sick leave more than they do for/to Plaintiff's white/Caucasian officers counterparts; Defendants assigned a surveillance unit to watch Plaintiff and follow him wherever he went including when Plaintiff went for medical treatment and appointments with his legal counsel; transferred Plaintiff to VIPER against department regulation as, an officer out on line of duty sick leave cannot be

transferred, just so that Defendants could deduct ten (10) percent of Plaintiff's salary; reduced Plaintiff's pension as a direct result of unlawfully reducing his salary/income by assigning him as a punishment to VIPER and reducing his annual salary by ten (10) percent.

83. That because of the unlawful discrimination against Plaintiff because of his race, national origin/ethnicity, the hostile work environment, the unlawful disparate treatment of Plaintiff based upon his race, national origin/ethnicity, the unlawful retaliation against Plaintiff for exercising his right to register complaints about the workplace and, in particular for registering repeated complaints about Defendant Rajan, the assault/attack/choking of Plaintiff by Defendant Rajan, the Defendants' failure to take remedial/corrective/disciplinary action against Defendant Rajan, the charges filed by Defendants against Plaintiff, the Defendants' failure to respond at all to Plaintiff's complaints about Defendant Rajan, the unlawful harassment of Plaintiff by Defendants including the Defendants placing him on "Modified" duty/assignment when he was victimized and assaulted by Defendant Rajan and the Defendants harassing and following Plaintiff when he was out on sick leave in order to undergo surgery on his left shoulder, the Defendants unlawfully forced/compelled Plaintiff to retire/resign and constructively terminated Plaintiff on or about December 1, 2013 -- after Plaintiff committed and served the Defendants City of New York and NYPD for over Twenty-Two (22) years.

84. That Defendants' unlawful constructive termination on or about December 1, 2013 of Plaintiff was because of the Defendants' unlawful hostile work environment, disparate treatment, discrimination and retaliation against Plaintiff because of Plaintiff's race, national origin/ethnicity and in retaliation against Plaintiff for exercising his lawful right to register complaints about the workplace and conditions therein including, but not limited to, his complaints about Defendant Rajan, Defendant Rajan's misconduct, Defendant Rajan's unlawful

and violent conduct, Defendant Rajan;s violations of citizens' rights and civil liberties and about Defendant Rajan's unlawful and criminal attack, assault, battery, use of unwarranted excessive force, choking and strangulation of Plaintiff which resulted in serious personal injuries to Plaintiff including, but not limited to: a torn and/or broken left shoulder requiring surgery and subsequent medical treatment therefor, injuries/pain to his neck, permanent scars to Plaintiff's left shoulder and arm, pain and suffering, mental anguish, humiliation, emotional distress (intentional and negligent).

85. That prior to, at the time of and subsequent to Defendant Rajan's unlawful and criminal attacks/assaults/battery/use of excessive and unwarranted force/choking and strangulation of Plaintiff on or about April 18, 2013 and April 19, 2013, Plaintiff repeatedly registered/made complaints about Defendant Rajan and his violent and criminal behavior, his violations of citizens' rights and civil liberties and his violent actions to the aforementioned and named Defendants herein but to no avail.

86. That at all times herein mentioned, the Defendants were acting within the scope of their employment, under the color of law, as state actors, and in concert one with the other.

87. That, upon information and belief, in September 1999, a Federal lawsuit was commenced by Twenty-Two individuals and the New York City Police Department Latino Officers' Association alleging discriminatory and disparate application of the New York City Police Department's disciplinary rules, procedures and punishments of Latinos, Afro-Americans and other minority police officers by Defendants City and NYPD.

88. Based upon information and belief, the Honorable Judge Lewis A. Kaplan of the United States District Court for the Southern District of New York certified the foregoing lawsuit as a class action which included all African-American and Hispanic Police Officers and certain

civilian employees of the New York City Police Department from 1995 forward then employed with the New York City Police Department and those who will be employed by the New York City Police Department as uniformed officers.

89. Based upon information and belief, that lawsuit alleged that African Americans and Latino Officers were less likely to be acquitted and have their charges dismissed than Whites at Departmental Hearings with the New York City Police Department and sixty (60) and thirty (30) percent more likely, respectively to be found guilty at the New York City Police Department trials than Whites.

90. Based upon information and belief, that lawsuit alleged that in terms of overall dispositions by the New York City Police Department, charges against Whites were more often dismissed or resulted in findings of not guilty while Afro-Americans and Latinos were far more often found guilty and that when findings of guilt were handed down, Afro-Americans and Hispanics were terminated by the New York City Police Department from said Department with greater frequency than White officers and the White officers received less penalties/punishment.

91. Based upon information and belief, the lawsuit further alleged that, overall and in general, Hispanics, Afro-Americans and other minority officers were disciplined and treated more often, more adversely and/or more severely than White/Caucasian and/or non-minority officers were by the Defendant New York City Police Department

92. Based upon information and belief, the Defendants City and NYPD settled the foregoing lawsuit with the Plaintiffs of that lawsuit in which, the Defendants provided a monetary award to the Plaintiffs of that lawsuit and members of the class and, more significantly, Defendants agreed to an injunctive relief that the Defendants, City and NYPD would be enjoined from discriminating based upon race, color, national origin, or ethnicity in the future.

93. Based upon information and belief, on or about December 2003, pursuant to the settlement of the foregoing class action lawsuit, Defendants City and NYPD entered into a signed stipulation of settlement – a contract- by the terms and conditions of which the Defendants City and NYPD were obligated to establish a review unit to analyze the New York City Police Department’s disciplinary process regarding discrimination and retaliation and whether African American and Latino/Hispanic members of the Police Department are being investigated, charged, disciplined or penalized in a discriminatory manner, to wit: a “Disciplinary Review Unit”.

94. That based upon information and belief, pursuant to said contract, the signed stipulation of settlement therein, the Defendants were obligated to establish this “Disciplinary Review Unit” to track and analyze whether minority members of the New York City Police Department, like Plaintiff herein, were being treated in a discriminatory manner when being disciplined as well as the Defendants were to establish an “Advisory Committee” to address employment discrimination and retaliation concerns.

95. Further, based upon information and belief, pursuant to same contract/stipulation of settlement, the Defendants were to develop a “Know Your Rights” guide to the New York City Police Department discipline system and to enhance existing databases and create new databases and report data thought to be relevant to analyzing whether or not discrimination was continuing on the New York City Police Department discipline system.

96. Based upon information and belief, on or about September 17, 2004, the District Court entered a judgment and order approving said stipulation of settlement/contract, and its terms and conditions, in the foregoing class action lawsuit. Based upon information and belief,

the settlement agreement/contract contained specific steps that the Defendants City and NYPD would take to establish procedures to prevent discrimination.

97. Here, Plaintiff Marco Trujillo and other Latino/Hispanic/Minority Officers similarly situated as him, are members of the Class set forth in the foregoing lawsuit and are members of the Class of police officers that the foregoing settlement agreement/stipulation/contract was designed and entered into to protect.

98. Plaintiff Marco Trujillo is a Spanish/Latino/Hispanic/Minority male who was employed by the NYPD as a police officer at or subsequent to the foregoing settlement/contractual agreement and, as such, is a member of that Class that the foregoing lawsuit and settlement agreement/contract was intended to futuristically protect and, as such, Plaintiff Trujillo is a beneficiary of said contract and/or has standing to seek to have a Court compel the Defendants to abide by all of the terms and conditions of same including, but not limited to: compelling the Defendants to establish a review unit to analyze the NYPD's disciplinary process regarding discrimination and retaliation and whether African American and Latino/Hispanic members of the Police Department are being disciplined, investigated, charged, prosecuted, terminated and/or penalized in a discriminatory manner and to comply with the settlement agreement's specific steps that the City and NYPD should have undertaken to establish procedures to prevent discrimination.

99. Based upon information and belief, per the terms of the foregoing stipulation/agreement, the Defendants City and NYPD were obligated to establish an "Employment Practice Unit" which essentially was slated to provide and conduct the same and/or similar function as the "Disciplinary Review Unit."

100. The Defendants City and NYPD breached the contract/stipulation agreement in that the Employment Practice Unit is wholly ineffective, inadequate, inept and did not and does not have an efficient system in place to track and analyze whether minority members of the New York City Police Department are being treated in a discriminatory manner when disciplined.

101. The Defendants City and NYPD breached the contract/stipulation agreement in that the "Employment Practice Unit" has failed and/or did not track and/or analyze whether minority members of the NYPD are being treated in a discriminatory manner when disciplined and their efforts fell short of the terms and conditions outlined in same stipulation/contract and Plaintiff Franco, and other Latinos and Afro-American Officers similarly situated, have been adversely affected by Defendants' failure to implement the terms and conditions of the settlement agreement.

102. Based upon information and belief, per the terms of the foregoing stipulation/agreement, the Defendants City and NYPD were obligated to establish an "Advisory Committee" to address employment discrimination and retaliation concerns within the New York City Police Department.

103. The Defendants City and NYPD breached the contract/stipulation agreement in that the Defendants failed to establish an "Advisory Committee" to address employment discrimination and retaliation concerns within the NYPD and their efforts fell short of the terms and conditions outlined in same stipulation/contract and Plaintiff Trujillo, and other Latinos and Afro-American Officers similarly situated, have been adversely affected by Defendants' failure to implement the terms and conditions of the settlement agreement.

104. The Defendants City and NYPD breached the contract/stipulation agreement in that the Defendants failed to establish a meaningful and/or effective and/or operable "Advisory Committee" to address employment discrimination and retaliation concerns within the NYPD.

105. That the Defendants City and NYPD constructively terminated Plaintiff Trujillo's employment on or about November 30, 2013-December 1, 2013 by unlawfully forcing him to resign/retire because of Defendants' unlawful discrimination, hostile work environment, disparate treatment and retaliation against Plaintiff based upon his race, national origin, color and/or ethnicity, and in unlawful retaliation for Plaintiff complaining about the hostile work environment and discrimination against him, as well as about Defendant Rajan's unlawful, criminal and violent conduct, violations of citizens' rights and unlawful and criminal assault/battery/attack/choking/strangulation/use of excessive and unwarranted force against Plaintiff herein.

106. That the Defendants breached the foregoing contract/stipulation of settlement therein and, had the Defendants complied with the aforementioned stipulation of settlement/contract and its terms and conditions, had the Defendants established a review unit and advisory committee, in addition to the other terms and conditions outlined in said stipulation/contract, had the Defendants properly and/or adequately established same and/or had the review unit and advisory committee, if so established, been performing its duties as per the stipulation of settlement/contract to try and prevent the unlawful discrimination and disparate treatment of Latino, African American and/or other minority police officers, than the review unit, the advisory committee and the Defendants would have and should have detected, stopped, prevented and/or remedied the very unlawful discrimination, retaliation, hostile work environment and disparate treatment by Defendants against Plaintiff herein.

107. That the foregoing stipulation of settlement/contract was designed to, in fact, protect Plaintiff herein from the Defendants' unlawful treatment, acts, conduct and/or omissions herein in their unlawful, hostile, discriminatory, disparate, intentional, malicious, and/or retaliatory treatment and discrimination against him.

108. As a result of the Defendants' breach of the foregoing stipulation of settlement/contract, Plaintiff suffered and continued to suffer, culminating in the ultimate unlawful act of constructive termination/forced resignation/retirement, the very unlawful, hostile, discriminatory, disparate, retaliatory conduct that the Defendants were obligated to establish said procedures to try and prevent and because of the Defendants' breach of same, the Defendants unlawfully continued their course of unlawful, hostile, discriminatory, disparate and retaliatory treatment against Plaintiff by the Defendants when non-minority/non-Spanish/non-Latino/non-Hispanic police officers were not so treated or constructively terminated by Defendants herein.

109. That the Defendants breached the foregoing stipulation of settlement/contract and, as a direct and proximate result, Plaintiff suffered and continues to suffer damages herein including, but not limited to, deprivation of rights, denial of proprietary interest, lost income, denial of title, rank and position, denial of compensatory salary, denial of pension and retirement benefits, denial of medical benefits, physical injuries, torn/broken left shoulder requiring surgery and subsequent medical treatment, injuries to his neck, pain and suffering, permanent scars to his left shoulder and arm, as well as mental anguish, pain, humiliation and emotional distress (negligent and intentional).

110. That in addition to the damages, losses, injuries set forth above, Defendants have further unlawfully discriminated against and retaliated against Plaintiff by, on or about December 1, 2013, after forcing Plaintiff to retire/resign (constructive termination) which

Plaintiff would not have done but for Defendants' unlawful and continuing unlawful conduct, Defendants banned Plaintiff from being able to carry firearms, took his personal legal firearms from him/his home and stamped his retirement identification card as being prohibited from carrying any firearms and/or restricting his license to carry such firearms thereby preventing Plaintiff, and tortuously interfering with Plaintiff's right and ability to seek other employment including but not limited to being a licensed bondsman and/or other employment that requires a license to carry a firearm. As a direct and proximate result of the Defendants' foregoing further unlawful conduct, Plaintiff has suffered and continues to suffer economic/monetary damages/losses as he has lost employment opportunities as a direct and proximate result from same.

111. That at all times herein mentioned the Defendants either individually/personally or through their employees, were acting under color of state law, acting in concert each with the other and/or in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the State or City of New York when they engaged in the herein mention unlawful and discriminatory acts and practice against the Plaintiff.

112. In addition to the facts alleged in the foregoing and following subparagraphs, the Defendants, are sued in their individual capacities and in their respective official capacities as agents, servants, licensees and/or employees of Defendants, The City of New York and New York City Police Department and for the purpose of the within action and at all times herein alleged, acted within the scope of their employment as agents, servants, licensees and/or employees of Defendants the City of New York and New York City Police Department.

113. That at all times herein mentioned it is the custom and practice of the Defendants to discrimination against individuals, as Plaintiff, based upon race, color, national origin,

ethnicity in violation of Title VII of the Civil Rights Act of 1964, as amended by the Civil Rights Act of 1991, 42 U.S.C. Sections 1981, 1981(a), 1983, 2000, 2000(e), 2000(e)(3), 2000(e)-2(a)(I).

114. That at all times herein mentioned it is the custom and practice of the Defendants to discrimination against individuals, as Plaintiff, of Dominican National Origin/Ethnicity.

115. That at all times herein mentioned it is the custom and practice of the Defendants to discriminate against, create an unlawful hostile work environment, unlawfully retaliate against and unlawfully treat disparately individuals like the Plaintiff herein, in violation of the laws and the Constitution of the State of New York and the laws and the Constitution of the United States of America and in violation of individual, as the Plaintiff, State and Federal Constitutional Right to Equal Protection as guaranteed by the 4th, 8th and 14th Amendments of the Constitution of the United States of America, in violation of New York Executive Law Art. 15 (NY Human Rights Law) and in violation of New York State Human Rights Law Sections 290-297) and the Administrative Code of the City of New York.

116. That at all times herein mentioned it is the custom and practice of the Defendants to discriminate against individuals and to deprive individuals, such as the Plaintiff herein, of the proprietary interest in acquired rank/title/position/salary/benefits without due process of law in violation of their State and Federal Constitutional Rights.

AS AND FOR A FIRST CAUSE OF ACTION FOR VIOLATION OF TITLE VII OF THE CIVIL RIGHTS ACT OF 1964 42 U.S.C. SECTIONS 1981, 1981(a), 1983 & 2000e. seq.

117. Plaintiff repeats and re-alleges each and every allegation set forth above in paragraphs of the complaint number "1" to "116" with the same force and effect as if set forth at length herein.

118. Defendants the City of New York and New York City Police Department are employers within the meaning of Title VII of the Civil Rights Act of 1964, as amended by the Civil Rights Act of 1991, 42 U.S.C. Section 1981, 1981(a), 1983 and 2000e, *et. seq.* and are vicariously liable and liable pursuant to *respondeat superior* for the actions, conduct, omissions and negligence of their employees including, but not limited to, the individually named Defendants herein, to wit: Defendants Urprasad, D'adamo, Purtell, Danberry, Rajan, Ariola, Papamichael, Mcnamara, Ebrahim, Piekarski, Traynor, Basendello, Romero and Thieleke.

119. Defendants Urprasad, D'adamo, Purtell, Danberry, Rajan, Ariola, Papamichael, Mcnamara, Ebrahim, Piekarski, Traynor, Basendello, Romero and Thieleke's unlawful, discriminatory, retaliatory, abusive and/or hostile conduct/work environment and unlawful disparate treatment against Plaintiff because of his race, color and/or national origin, and in retaliation for his exercising his right to engage in the protected activity of registering complaints about the workplace, including but not limited to Plaintiff's complaints about the violence and violent propensity/conduct of Defendant Rajan and about Defendant Rajan's physical and criminal assault/excessive force against Plaintiff, as set forth in detail above, compelled and forced Plaintiff to resign his employment, title, position, rank, authority, salary and benefits as an NYPD officer, thereby constructively terminating Plaintiff, and further deprived Plaintiff of his right to make and enforce contracts to the full and equal benefit of Defendants' regulations and all laws and proceedings for the security of Plaintiff's employment in violation of Title VII of the Civil Rights Act, 42 U.S.C. Sections 1981, 1981(a), 1983, 2000, 2000(e), 2000(e)(3) and 2000(e)-2(a)(1) for which Defendants the City of New York and NYPD are liable.

120. Defendants the City of New York, the NYPD, Urprasad, D'adamo, Purtell, Danberry, Rajan, Ariola, Papamichael, Mcnamara, Ebrahim, Piekarski, Traynor, Basendello,

Romero and Thieleke, their officers, agents, servants, and/or employees are responsible for the intentional and unlawful/discriminatory/hostile/retaliatory/disparate acts, conduct, treatment, practices and /or policies, and for creating and/or fostering a hostile, discriminatory, disparate and retaliatory work environment that caused Plaintiff to suffer and sustain damages herein as the Defendants created same, knew about same, received Plaintiff's complaints about same and failed to take remedial, corrective, investigative and/or disciplinary measures against any of the Defendants named herein.

121. Defendants Urprasad, D'adamo, Purtell, Danberry, Rajan, Ariola, Papamichael, Mcnamara, Ebrahim, Piekarski, Traynor, Basendello, Romero and Thieleke, their officers, agents, servants, and/or employees are/were, at all times herein mentioned, acting within the scope of their employment, acting under the color of law, and in concert with one another. Defendants the City of New York and New York City Police Department are liable for said individually named Defendants' intentional, unlawful, discriminatory, hostile, disparate and/or retaliatory acts, conduct, treatment, practices and/or policies created, fostered, enforced, maintained and/or perpetuated against Plaintiff herein.

122. That during the course of his employment, Plaintiff engaged in the protected activity of registering complaints to Defendants, as set forth in detail above as to which Defendants he registered complaints and when, about the hostile and unlawful work environment/conditions, including but not limited to Plaintiff's complaints about Defendant Rajan and Rajan's unlawful and criminal attack/assault/excessive force against Plaintiff that occurred on April 18, 2013 and April 19, 2013, with Plaintiff's last complaint being made before and subsequent to each and every unlawful act and of mistreatment by said Defendants towards the Plaintiff.

123. Defendants the City of New York, the NYPD, Urprasad, D'adamo, Purtell, Danberry, Rajan, Ariola, Papamichael, Mcnamara, Ebrahim, Piekarski, Traynor, Basendello, Romero and Thieleke, their officers, agents, servants, and/or employees discriminated in the workplace against Plaintiff because of his race, color and/or national origin and in unlawful retaliation to Plaintiff's complaints about the hostile work environment/conditions and, as a result of same, Defendants the City of New York and NYPD are liable herein.

124. Defendants the City of New York, the NYPD, Urprasad, D'adamo, Purtell, Danberry, Rajan, Ariola, Papamichael, Mcnamara, Ebrahim, Piekarski, Traynor, Basendello, Romero and Thieleke, their officers, agents, servants, and/or employees do not treat Caucasian and/or non-Latino, non-Hispanic and/or non-Spanish police officers, similarly situated as Plaintiff, as they treated the Plaintiff herein. Defendants the City of New York, the NYPD, Urprasad, D'adamo, Purtell, Danberry, Rajan, Ariola, Papamichael, Mcnamara, Ebrahim, Piekarski, Traynor, Basendello, Romero and Thieleke, their officers, agents, servants, and/or employees do not treat other groups who do not engage in the protected activity of registering complaints about work conditions/environment, similarly situated as Plaintiff, as they treated Plaintiff herein.

125. Defendants New York City and New York City Police Department are liable for said Defendants' Urprasad, D'adamo, Purtell, Danberry, Rajan, Ariola, Papamichael, Mcnamara, Ebrahim, Piekarski, Traynor, Basendello, Romero and Thieleke, their officers, agents, servants, and/or employees' intentional, unlawful, discriminatory and/or disparate acts, conduct, treatment, practices and/or policies that were intentionally, hostilely, unlawfully, retaliatorily and discriminatorily applied to Plaintiff including, but not limited to the unlawful retaliatory acts/conduct set forth above including, but not limited to:

- That in or about 2010, after being falsely accused by Defendant Danberry as and for the search warrant protocols, Plaintiff complained about said false accusation to Defendant Danbury and, in response to Plaintiff exercising his right to register complaints about the workplace, Defendant Danberry then falsely charged, filed charges, initiated departmental charges against Plaintiff charging Plaintiff and/or causing Plaintiff to be charged with departmental charges of transporting a prisoner in an unauthorized police vehicle. That, upon information and belief, Defendant Danberry notified the NYPD and/or the NYPD's Advocate's Office of said Defendant's false allegations about Plaintiff and thereby issued and/or caused to be issued by Defendant NYPD, official Charges and Specifications against Plaintiff for same;

- That in or about 2010, in response to Defendant Danberry's false allegations/charges against him of allegedly transporting a prisoner in an unauthorized vehicle, Plaintiff notified Defendant Danberry and the NYPD that, in connection with the assignment he was working with/for the federal government, of which Defendant Danberry and Defendant NYPD was aware, the vehicle he used to transport the prisoner was an authorized vehicle issued/assigned to him in connection with said assignment and was an authorized vehicle for transport;

- That despite Defendants Danberry and the NYPD knowing that said vehicle was an authorized vehicle for Plaintiff to transport a prisoner, same Defendants, in continued unlawful retaliation against Plaintiff for registering complaints about/against Defendant Danberry, continued to prosecute Plaintiff on/for the foregoing Charges and Specifications;

- That Plaintiff, forced to defend himself against these baseless charges and specifications, exercised his right to proceed to trial where Plaintiff was found 'NOT GUILTY' of Defendant Danberry's false charges against him by the NYPD Trial Commissioner as the NYPD

Trial Commissioner correctly determined that the vehicle in question was assigned to Plaintiff by the federal government in conjunction with and connection to the nature of his assignment and, as such, the vehicle in question was, in fact, an authorized vehicle for prisoner transport;

- That shortly after Plaintiff was found 'Not Guilty' of Defendant Danberry's and the NYPD's foregoing meritless and baseless charges and specifications against him, Defendants Danberry and the NYPD, in their continued pattern and practice of unlawful retaliation against Plaintiff, in or about 2010, forcibly transferred Plaintiff out of the Intelligence Division to the 13th Precinct;

- That in furtherance of their unlawful retaliation against Plaintiff, and in creating, fostering and perpetuating an unlawful hostile work environment against Plaintiff, Defendants Danberry and the NYPD, despite Plaintiff being found 'Not Guilty' of the foregoing charges, maintained and left same charges to remain on Plaintiff's NYPD departmental records. That, upon information and belief, Defendant NYPD's practice/policy/custom, as demonstrated by the treatment of the non-minority officers, is that once an officer is found 'Not Guilty' of any charges and/or specifications, the NYPD, its agents, servants and/or employees are to remove said charges/specifications from the officer's NYPD departmental records and their practice/policy/custom is not to allow same to remain in an officer's NYPD departmental records as they did with/to Plaintiff herein.;

- That, in addition to Plaintiff's own subjective belief and opinion as to Defendant Danberry transferring him out of the Intelligence Division in unlawful retaliation and hostile work environment, Plaintiff was told/advised by a Lieutenant Miller of the NYPD that Defendant Danberry transferred Plaintiff out of the Intelligence Division because Defendant Danberry hated Plaintiff and because Defendant Danberry was retaliating against Plaintiff for having complained

about Defendant Danberry and to further retaliate against Plaintiff and to punish Plaintiff for having been found 'Not Guilty' of Defendants Danberry and the NYPD's foregoing meritless and baseless charges;

- That the 2010 retaliatory transfer of the Plaintiff by Defendants Danberry and the NYPD to the 13th Precinct was a materially adverse employment action against Plaintiff as same was a demotion for Plaintiff given Plaintiff's seniority and activity numbers. By Defendants Danberry and NYPD intentionally and forcibly transferring Plaintiff to the 13th Precinct, Defendant NYPD forced Plaintiff to work day tours instead of night tours which, in turn, directly and proximately reduced Plaintiff's income/salary by approximately more than ten (10) percent which said Defendants knew Plaintiff would suffer as a result of same;

- That Plaintiff believes this forced 2010 transfer to the 13th precinct was in retaliation against him by Defendants Danberry and the NYPD for Plaintiff registering complaints about Defendant Danberry and for Plaintiff being found 'Not Guilty' of Defendants Danberry's and NYPD's baseless charges against him. That said Defendants knew that Plaintiff would suffer a reduction of salary/income as a result of the retaliatory transfer and did so with the intent to further retaliate against/punish Plaintiff;

- That, as a direct and proximate result of the Defendants Danberry and NYPD forcibly transferring Plaintiff to the 13th precinct in 2010, Plaintiff was forced/compelled to suffer and sustain the reduction of salary/income while at the 13th precinct for approximately nine (9) months – upon information and belief, the longest day tour that Defendant NYPD ever assigned to any officer in that squad as there were officers in that squad at the 13th precinct for seven (7) years who, upon information and belief, [n]ever worked a day tour for nine (9) months as Plaintiff was forced to do herein;

- That in or about December 2011, Defendant Deputy Inspector John D'Adamo (Caucasian/White male) attempted to coerce/force Plaintiff to 'voluntarily' transfer into Patrol Borough Manhattan South Anti-Crime Unit and, upon information and belief, Defendant D'Adamo continued to attempt to force Plaintiff to 'voluntarily' transfer to said Unit from in or about December 2011 to in or about June 2012;

- That every time that Defendant D'Adamo attempted to force Plaintiff to 'voluntarily' transfer to the Manhattan South Anti-Crime Unit, Plaintiff refused to 'voluntarily' transfer and refused same directly to Defendant D'Adamo. That in response to Defendant D'Adamo's persistence in forcing Plaintiff to transfer to Manhattan South, and in particular to the Conditions Unit of Manhattan South, Plaintiff registered a complaint to Defendant D'Adamo telling him that the Conditions Unit had a high number of Civilian Complaint Review Board Complaints, about police misconduct/unlawful conduct made against the Unit and the Units' officers, and that he (Plaintiff) did not wish to work there. In response to Plaintiff's complaint, Defendant D'Adamo threatened Plaintiff that Plaintiff had to work there whether Plaintiff liked it or not;

- That, upon information and belief, Defendant D'Adamo, in retaliation against Plaintiff for refusing the 'voluntary' transfer that Defendant D'Adamo was attempting to force upon Plaintiff, complained about Plaintiff and Plaintiff's refusal of the forced 'voluntary' transfer to Defendant Chief Thomas Purtell;

- That in or about June 2012, Defendants D'Adamo and Defendant Chief Thomas Purtell (Caucasian/White male), forcibly transferred Plaintiff (involuntary transfer) from the 13th Precinct to the Patrol Borough Manhattan South Anti-Crime Unit as Defendant Purtell wanted to improve the Unit's 'numbers' and wanted Plaintiff to achieve same for him;

- That in or about June 2012, Plaintiff complained about the forced transfer to, at that time, NYPD Lieutenant Harrington who, upon information and belief, is now Captain Harrington, and who was, at that time, one of the supervisors at the Conditions Unit at Manhattan South Anti-Crime as Plaintiff did not want to work in the Conditions Team. That Captain Harrington advised Plaintiff that if Plaintiff did not accept the transfer, it would be treated as an insult to Defendant Purtell which would not bode well for Plaintiff's career. Having been advised of the foregoing, Plaintiff accepted the transfer;

- That as a direct and proximate result of the Defendants D'Adamo and Purtell forcing/compelling Plaintiff to transfer to Manhattan South, and, in particular, to the Conditions Unit, Plaintiff suffered and sustained an economic loss in salary/income of approximately more than Thirty Thousand Dollars (\$30,000.00);

- That in or about June 2012, when Plaintiff was forcibly transferred to the Patrol Borough Manhattan South Anti-Crime Unit, marked the first time that Plaintiff was to work with Defendant Sergeant John Rajan (South Asian male);

- That from in or about June 2012 to on or about April 2013, Defendant Rajan, within the scope of his employment and acting under color of law, without the authority, permission or consent by Plaintiff, and without authority pursuant to the rules, codes, regulations and/or policies of the New York City Police Department, in an abuse of Defendant Rajan's power, trust, authority, position, title and rank as a NYPD officer and in furtherance of Defendant Rajan's unlawful discrimination against Hispanics/Latinos within the NYPD, unlawfully accessed Plaintiff's official NYPD department records and unlawfully disclosed Plaintiff's information contained therein to others in the Patrol Borough Manhattan South Anti-

Crime Unit including the nature of Plaintiff's sensitive federal government assignment while at the Intelligence Division -- a disclosure that could jeopardize Plaintiff's safety and life;

- That from in or about June 2012 to on or about April 2013, Plaintiff repeatedly exercised his right to register complaints about the workplace and reported Defendant Rajan's foregoing misconduct/unlawful conduct to the entire NYPD chain of command assigned to Patrol Borough Manhattan South up to and including registering complaints to Defendant Purtell as well as to Defendants Romero, Traynor, D'Adamo, Piekarski and to a NYPD Lieutenant Mendez, but, to no avail as Defendants took no such remedial action in response to Plaintiff's repeated complaints. In each such registered complaint, Plaintiff repeatedly requested that Defendants Purtell, Romero, Traynor, D'Adamo, Piekarski, as well as NYPD Lieutenant Mendez, and the NYPD at large, conduct an investigation of Defendant Rajan and into his official misconduct and unlawful/discriminatory actions, conduct and behaviors, including his acts of violence and excessive force, but, to no avail as Defendants took no such remedial or corrective action in response to Plaintiff's repeated complaints;

- That from in or about June 2012 to on or about April 2013, Plaintiff also complained to the foregoing NYPD chain of command at Manhattan South about Defendant Sergeant Rajan's history of excessive force, violent acts, conduct and/or behavior towards/against others including, but not limited to: violence/excessive force against other officers and against those citizens who Defendant Rajan stops, detains, arrests and/or imprisons; thereby causing them to sustain physical injury therefrom and thereby exposing the NYPD and its officers such as Plaintiff who work with Defendant Rajan to unnecessary and needless excessive force, brutality, assault, battery and other complaints being made for physical injuries being sustained at the hands of Defendant Rajan as well as for Defendant Rajan's violation of citizens' civil

rights by, including but not limited to, targeting poor, Black/African American and/or Hispanic citizens. That Plaintiff's complaints were futile as these Defendants again took no remedial or corrective action in response to Plaintiff's complaints herein;

- That the Defendants Purtell, Romero, Traynor, D'Adamo, Piekarski, as well as NYPD Lieutenant Mendez, despite receiving Plaintiff's repeated complaints about the foregoing, and despite knowing of Defendant Rajan's unlawful, abusive, misconduct, official misconduct and violent conduct/acts/behavior, took no remedial or corrective measures to stop same, conducted no investigation of Plaintiff's repeated complaints and failed to initiate any disciplinary action against Defendant Rajan. Rather, despite knowing of all of the foregoing, Defendants allowed same to continue and facilitated, fostered and/or perpetuated same allowing Defendant Rajan's unlawful conduct to continue and to become the NYPD's practice and custom to allow same to continue. The foregoing Defendants, and the Defendant the NYPD at large, allowed Defendant Rajan to be protected by the upper tier supervisors of the NYPD and allowed him to continue his employment as an NYPD officer and to put the safety, health and well being of the other NYPD officers, including Plaintiff herein, as well as that of the citizens of the City of New York, in risk and jeopardy of physical harm and injury at the hands of Defendant Rajan;

- That, in particular, one of Plaintiff's repeated complaints about Defendant Rajan was made on or about August 21, 2012 to Defendant Captain Thomas Traynor (Caucasian Male) in which Plaintiff complained to Defendant Traynor about Defendant Rajan's history of violent conduct, as well as complaining about Defendant Rajan's unlawful accessing of Plaintiff's personal NYPD department records and disclosing the contents of same to others in the department. In same August 2012 complaint to Defendant Traynor, Plaintiff further advised Defendant Traynor that other members of the service/officers of the NYPD did not want to work

with Defendant Rajan because of Defendant Rajan's unlawful and violent conduct, actions and behavior that placed their lives, safety and careers in jeopardy;

- That on August 21, 2012, in response to Plaintiff's August 21, 2012 complaint to Defendant Traynor about Defendant Rajan, Defendant Traynor, in furtherance of the NYPD's supervisors' continued protection of Defendant Rajan, told Plaintiff that he, Defendant Traynor, ordered Defendant Rajan to run a P.E.P.E.R. on Plaintiff to access Plaintiff's personal NYPD departmental records. That Plaintiff believes that Defendant Traynor is lying to Plaintiff on August 21, 2012, when he told Plaintiff that he ordered Defendant Rajan to run the P.E.P.E.R. on Plaintiff in the Defendant's furthered effort, while acting under color of law, to protect and shield Defendant Rajan from disciplinary action by the NYPD as Defendant Rajan is well connected to the superiors in the chain of command (including Defendant Traynor) as he is a member of the Desi Society within the NYPD and he does many favors for the superiors within the chain of command (including Defendant Traynor) and, in return for same, acting under color of law, the Defendants cover up, lie, protect, deny and shield Defendant Rajan from adverse action, disciplinary action, being brought up on charges and the like despite knowing of Defendant Rajan's unlawful conduct. If, in fact Defendant did order Defendant Rajan to run the P.E.P.E.R. on Plaintiff, then Defendant Traynor, who is close friends with Defendant Rajan, would be in violation of NYPD departmental policy and, to date, no adverse action or disciplinary action has been taken against Defendant Traynor for same nor have Defendants taken any corrective or remedial measures/action against Defendant Rajan and/or Traynor therein;

- That on or about February 21, 2013, during a meeting at Patrol Borough Manhattan South with Defendants' Purtell, Piekarski (Caucasian Male) and Basendello, Plaintiff again made and registered complaints to these foregoing Defendants about Defendant Rajan's

unlawful and violent conduct, actions and behavior and how Defendant Rajan unlawfully accessed and disclosed Plaintiff's personal NYPD departmental records and personal information contained therein but, to no avail as these Defendants failed to take any corrective or remedial action against/about Defendant Rajan in response to Plaintiff's complaints;

- That within less than two (2) months after Plaintiff's foregoing complaints made on February 21, 2013 to Defendants Purtell, Piekarski (Caucasian Male) and Basendello about Defendant Rajan in response to which these Defendants also took no remedial or corrective action, on or about April 17, 2013, while inside of Patrol Borough Manhattan South, Plaintiff again registered/made complaints about Defendant Rajan to Defendants Piekarski and D'Adamo and further told Defendants Piekarski and D'Adamo that Plaintiff did not feel safe or comfortable working with Defendant Rajan given Defendant Rajan's unlawful and violent actions, conduct and behavior, including Defendant Rajan having assaulted/used excessive force against a female detainee;

- That on April 17, 2013, in response to Plaintiff's foregoing complaints about Defendant Rajan, Defendants Piekarski and D'Adamo took no remedial or corrective action and failed to take any action in response to same;

- That on or about April 18, 2013, while Plaintiff was exiting Patrol Borough Manhattan South, without reason or provocation or any conduct whatsoever on the part of Plaintiff herein, Defendant Rajan, while he was on duty, acting within the scope of his employment, and acting under color of law, physically attacked/assaulted Plaintiff requiring two police officers who witnessed same to intercede and prevent Defendant Rajan, by restraining him, from attacking/assaulting/using excessive force against Plaintiff again. After breaking free from their restraint, on same date of April 18, 2013, Defendant Rajan then threatened Plaintiff

again including, but not limited to, threatening the use of force/violence against him and told Plaintiff that he (Rajan) was told/made aware by Defendants, including, upon information and belief, by Defendants D'Adamo, Piekarski, Traynor, Romero and/or Purtell, that Plaintiff made/registered complaints to them about Defendant Rajan and about Defendant Rajan's unlawful/violent conduct, actions and behavior and that Defendant Rajan attacked Plaintiff on April 18, 2013 because of/in retaliation for same and that he (Rajan) would, in sum and substance, 'get' Plaintiff again;

- That Defendant Lieutenant Jesus Romero (Hispanic Male), who at the time of Defendant Rajan's physical assault on/of Plaintiff on or about April 18, 2013, was the Integrity Control Officer, was aware of and knew of Defendant Rajan's misconduct/unlawful conduct of attacking/assaulting/using excessive force against Plaintiff on April 18, 2013 but, despite same, while acting within the scope of his employment and acting under color of law, and in furtherance of Defendants' continued course of action to protect Defendant Rajan and to cover up his unlawful/hostile/discriminatory/retaliatory conduct, Defendant Romero did not discipline Defendant Rajan, did not take any corrective or remedial action against him, did not report Defendant Rajan to the chain of command or to the NYPD's Advocate's Office, did not report him to Defendant Purtell nor did he notify the Internal Affairs Bureau of Defendant Rajan's unlawful conduct/misconduct/assault/excessive force against Plaintiff despite Plaintiff registering complaints to Defendants Purtell, Romero, Traynor and Piekarski about same as Plaintiff was the victim of Defendant Rajan's assault/excessive force and wished charges to be brought against Defendant Rajan for same;

- That despite Plaintiff's complaints about Defendant Rajan's April 18, 2013 physical attack/assault/excessive force against him, and despite two other police officers

witnessing same, Defendants Purtell, Romero, Traynor and Piekarski took no remedial or corrective action against Defendant Rajan in response to same;

- That, as the foregoing Defendants failed to take any remedial action or corrective measures, or disciplinary action, against Defendant Rajan for his unlawful assault/excessive force committed against Plaintiff on April 18, 2013, and in retaliation against Plaintiff for registering a complaint about same, these Defendants allowed and permitted Defendant Rajan to continue his employment without being held accountable for the April 18, 2013 attack on Plaintiff and allowed Defendant Rajan to be in the physical presence of Plaintiff; thereby creating the dangerous and hazardous working conditions/environment for Plaintiff to be forced to work with Defendant Rajan affording Defendant Rajan the time and opportunity to commit such unlawful act against Plaintiff and Plaintiff's life/safety again;

- That on or about April 19, 2013, the very next day after Defendant attacked/assaulted Plaintiff on or about April 18, 2013, as Defendants took no remedial, corrective or disciplinary action against Defendant Rajan for the April 18, 2013 attack on Plaintiff and, despite knowing of same, allowed Defendant Rajan to continue his employment, while Plaintiff was inside of Patrol Borough Manhattan South, Defendant Rajan again initiated another physical confrontation and attack on Plaintiff. In furtherance of this attack/assault/use of excessive force against Plaintiff Defendant Rajan, while acting within the scope of his employment, while he was on duty and acting under color of law, ordered the subordinate officers out of the Anti Crime Office. As the acting supervisor of the Unit, Plaintiff ordered the officers to suit up and prepare to go out on patrol. While Plaintiff was inside the room/office that housed his locker and uniform equipment, an office/room that Defendant Rajan had no authority to be in, and while Plaintiff was retrieving his equipment from his locker, was facing his locker

and had his back to the door, Defendant Rajan unlawfully and without permission, consent or authority, and without any provocation, reason or conduct by Plaintiff whatsoever, entered Plaintiff's office and from behind, attacked, assaulted, battered, choked, hit, struck, pushed, falsely imprisoned and otherwise was violent and used excessive force against Plaintiff herein;

- That NYPD Officers Traci McLaughlin (Female), Eric Ahlfeld and Michael Bellagamba were present and all had to physically restrain and tried to remove Defendant Rajan from Plaintiff's neck in order to try and stop Defendant Rajan from continuing to choke Plaintiff. In response to the foregoing Officers' attempt to restrain and stop Defendant Rajan from continuing to choke and attack/assault/use excessive force against Plaintiff, Defendant Rajan then physically pushed NYPD Officer McLaughlin. After Plaintiff was freed from Defendant Rajan's chokehold, assault, battery and excessive force, Defendant Rajan immediately ran to his friend, Defendant Deodat Urprasad (South Asian Male), the Commanding Officer of the Patrol Borough Manhattan South Investigations Unit -- the same unit where Defendant Rajan improperly, unlawfully and without authorization, permission or consent, accessed Plaintiff's official department records and disclosed same information to other Officers. That both Defendants Rajan and Urprasad are members of the NYPD Desi Society, the fraternal organization that represents South-Asian Officers and both Defendants had previously made it known that they do not like Hispanics/Latinos including Plaintiff herein;

- That on the same day of this second attack by Defendant Rajan, on April 19, 2013, Plaintiff informed, made/registered a complaint with and/or put Defendants Purtell, D'Adamo, Traynor, Romero, Piekarski and/or the NYPD at large on notice about Defendant Rajan's unlawful attack/assault/choking/battery/excessive force committed against him on or about April 19, 2013. In particular, Plaintiff notified Defendant D'Adamo about Defendant Rajan's unlawful

attack/assault/choking/battery/excessive force committed against him to which Defendant D'Adamo told Plaintiff that he was going to notify the Duty Captain about same. Plaintiff further complained to Defendant D'Adamo of the physical pain/injuries that he was suffering from as a result of Defendant Rajan's unlawful attack/assault/battery/excessive force including, but not limited to: pain in his neck, upper back and left shoulder; pain and strangulation marks around Plaintiff's neck, difficulty breathing, choking, the feeling that something "popped" out of his left shoulder and a tear in and/or broken left shoulder. As a direct and proximate result of Defendant Rajan's unlawful assault/attack/choking/battery/excessive force committed against him, Plaintiff was transported to Bellevue Hospital where he was treated;

- On or about April 20, 2013, upon Plaintiff's arrival back at the command after being assaulted/attacked/battered/choked/victim of excessive force by Defendant Rajan, and after being treated at Bellevue Hospital for same, Plaintiff, heavily medicated for his injuries sustained therefrom, was met by Defendant Sergeant Benevolent Association's Manhattan North Delegate Sergeant Cliff Thieleke (Caucasian Male) to discuss with him the incidents of April 18-April 19, 2013 involving Defendant Rajan;

- That on April 20, 2013, Plaintiff also complained to Defendant Thieleke about Defendant Rajan's two attacks/assaults/uses of excessive force against him on April 18, 2013 and on April 19, 2013 and further complained about how Plaintiff had previously and repeatedly complained to Defendants Purtell, Traynor, Romero, D'Adamo, Piekarski and others about Defendant Rajan's unlawful, violent and discriminatory conduct/misconduct/behavior and that the Defendants failed to take any action, investigation or disciplinary action against Defendant Rajan;

- That on April 20, 2013, three (3) days after Plaintiff's April 17, 2013 complaints about Defendant Rajan, two (2) days after Plaintiff's April 19, 2013 complaints about Defendant Rajan and one (1) day after Plaintiff's April 19, 2013 complaints about Defendant Rajan, in furtherance of Defendants' unlawful retaliation against and hostile/discriminatory conduct against Plaintiff, and in direct retaliation to Plaintiff's April 17, 2013, April 18, 2013 and April 19, 2013 complaints about Defendant Rajan and Defendant Rajan's unlawful assault/attack/use of excessive force against Plaintiff on said dates, Defendant NYPD, through its agents, servants and employees, including, but not limited to Defendants Purtell, Traynor, Romero, D'Adamo, Piekarski and/or Thieleke, made Plaintiff the subject of a GO 15 investigation regarding said attacks even though the Defendants herein knew that Defendant Rajan attacked Plaintiff, that Plaintiff was the victim of same and not any aggressor and that other officers witnessed same. That as a subject of such GO 15 investigation, Plaintiff was put on notice by Defendants that he, as a [v]ictim, was going to be brought up on departmental charges for Defendant Rajan's attacks/assaults/uses of excessive force against him instead of Defendant Rajan being the subject of such an investigation and Plaintiff the complaining witness/victim;

- That during the foregoing GO15 by Defendants, as Plaintiff was going to be questioned regarding same, Plaintiff requested an attorney but was unlawfully denied/refused same by Defendants, their agents, servants and/or employees. Instead, during the questioning by/with Defendant Thieleke, Defendant Thieleke, acting under the color of law, acting within the scope of his employment with Defendants and acting in concert with the other Defendants herein, in making Plaintiff the subject of the GO 15 investigation, and in the Defendants' continued and furthered efforts to protect Defendant Rajan, cover up Defendant Rajan's unlawful and violent conduct and to prevent any adverse and/or disciplinary actions being taken against

Defendant Rajan, told Plaintiff [n]ot to report/notify/advise or even mention that Defendant Rajan attacked/assaulted/choked/strangled him/used excessive force against him on April 18, 2013 and on April 19, 2013;

- That on April 20, 2013, acting under color of law, within the scope of his employment with Defendants and in concert with the other Defendants herein, and in the Defendants' continued and furthered efforts to protect Defendant Rajan, cover up Defendant Rajan's unlawful and violent conduct and to prevent any adverse and/or disciplinary actions being taken against Defendant Rajan, Defendant Thieleke told/advised Plaintiff to lie about Defendant Rajan's attack/assault/choking/battery/excessive force and further advised/threatened Plaintiff that if Plaintiff did not lie about same, Plaintiff would be suspended and arrested by Defendants. Defendant Thieleke further threatened Plaintiff that he Defendant Thieleke has worked with Defendant McNamara and the only way Plaintiff will not be suspended is if Plaintiff does not notify/report or tell anyone about Defendant Rajan's choking/strangulation of Plaintiff that occurred on April 19, 2013;

- That as a victim of assault/excessive force by Defendant Rajan, Plaintiff refused to lie and told Defendant Thieleke that he would not lie about Defendant Rajan choking/strangling/assaulting/attacking/battering/using excessive force against Plaintiff. Despite Defendant Rajan's unlawful and criminal conduct against Plaintiff, and despite the Defendants knowing of same, in retaliation against Plaintiff for not lying about the choking/strangulation by Defendant Rajan, the Defendants not only did not take any remedial/corrective actions against Defendant Rajan but, further, did not refer/report the matter to Internal Affairs Bureau as required by NYPD department policy, did not arrest Defendant Rajan, did not suspend Defendant Rajan, nor take any disciplinary action against him for same but, rather, on April 20,

2013 to on or about Plaintiff's constructive termination on or about December 1, 2013, proceeded with the GO 15 investigation against Plaintiff to then commence/file charges against Plaintiff and prosecute him on departmental charges/specifications-- all the while knowing that Plaintiff was the victim and Defendant Rajan was the perpetrator;

- In further retaliation against Plaintiff and in furtherance of Defendants' acting under color of law and in concert with the other, in efforts to protect/shield/cover up and/or prevent Defendant Rajan from being brought up on charges (criminal and/or departmental), being suspended and/or having any disciplinary action taken against him for the unlawful and criminal acts committed against Plaintiff on or about April 19, 2013, Defendants, in an intentional violation of NYPD departmental policy, compelled/forced Plaintiff, on April 20, 2013, to undergo questioning by Defendants without an attorney and while Plaintiff was under medication that he was taking for the injuries caused by Defendant Rajan; thereby intentionally acting under the color of law and in concert with the other to lessen/mitigate/avoid the adverse/disciplinary/criminal consequences to/for Defendant Rajan and depriving Plaintiff of Plaintiff's rights and further damaging/undermining Plaintiff's rights to pursue a criminal arrest and prosecution of Defendant Rajan therefor. The foregoing was ordered/implemented/conducted/put in place by Defendants Purtell, McNamara, Piekarski, and Papamichael (Caucasian Female);

- That Defendants Purtell, McNamara, Piekarski, and Papamichael, despite having knowledge of prior incidents of police misconduct, have facilitated, fostered and perpetuated the NYPD's practice and custom of covering up similar instances of police misconduct in the past including, but not limited to, prior incidents of police misconduct of/by Defendant Rajan;

- That in furtherance of Defendants' unlawful, retaliatory, discriminatory and hostile work environment against Plaintiff, Defendants Urprasad, Ariola (Caucasian Male), and Ebrahim (Caucasian Male) from on or about April 20, 2013 to on or about December 1, 2013, intentionally violated NYPD department policy in their undertaking/conducting of the criminal investigation regarding Defendant Rajan's assault/attack/battery/choking and use of violent excessive force against Plaintiff herein. That these Defendants did the foregoing in concert with the other and acting under color of law in furtherance of the unlawful retaliation against Plaintiff and in furtherance of Defendants' efforts to shield/protect Defendant Rajan and to cover up/deny and allow to go unpunished and unanswered for, Defendant Rajan's criminal, unlawful and departmental misconduct, actions, conduct and behavior committed against Plaintiff herein;

- That during the Defendants' purported investigation of Defendant Rajan attacking/assaulting/battering/choking/excessive force against Plaintiff, and, in particular during the Defendants' interview/questioning of Plaintiff, Defendant Papamichael, on or about April 20, 2013, three (3) days after Plaintiff's April 17, 2013 complaints about Defendant Rajan, two (2) days after Plaintiff's April 19, 2013 complaints about Defendant Rajan and one (1) day after Plaintiff's April 19, 2013 complaints about Defendant Rajan, despite knowing that Plaintiff was, among other things, choked/strangled by Defendant Rajan around/at Plaintiff's neck, unlawfully/inappropriately and intentionally, without Plaintiff's consent/permission/authority, grabbed Plaintiff around his neck in efforts to simulate the attack/choking of Plaintiff by Defendant Rajan all the while questioning Plaintiff's truthfulness about his claims even though she had the physical and medical evidence, as well as the names of the police officers who were witnesses to same, while she simultaneously bragged about her own skill in martial arts;

- In retaliation against Plaintiff for not lying about Defendant Rajan choking/strangling him, and in furtherance of Defendants acting under color of law and in concert with the other to protect/shield Defendant Rajan and to prevent any adverse/criminal/disciplinary charges/actions against Defendant Rajan, Defendants, including Defendants NYPD, Purtell, D'Adamo, Piekarski, McNamara, Papamichael, Urprasad, Ariola, Ebrahim and/or Thieleke, knowing that Plaintiff was the victim of a crime committed against him by Defendant Rajan, placed Plaintiff on or about April 20, 2013, three (3) days after Plaintiff's April 17, 2013 complaints about Defendant Rajan, two (2) days after Plaintiff's April 19, 2013 complaints about Defendant Rajan and one (1) day after Plaintiff's April 19, 2013 complaints about Defendant Rajan, on "Modified" Duty/Assignment as a punishment and adverse employment action against Plaintiff as same is a restriction/limitation of Plaintiff's performance of duty; brought Plaintiff, and not Defendant Rajan on charges of being in a physical altercation and transferred him to another Unit (VIPER) as a punishment/adverse employment action as Plaintiff's duty at VIPER caused him to lose any overtime duty and overtime salary/income as a direct result from same;

- That Defendant Urprasad, friend of Defendant Rajan, brought the charges against Plaintiff and conducted the investigation which should have been performed by NYPD's IAB, not Defendant Urprasad;

- That while Plaintiff was brought up on charges, placed on "Modified" duty and transferred to VIPER Unit by Defendants from on or about April 20, 2013 to on or about December 1, 2013, thereby placing Plaintiff on restricted duty and causing him to lose overtime income/salary, the Defendants, in direct contrast, transferred Defendant Rajan, despite being the perpetrator of the crime against Plaintiff, to another Unit where Defendant Rajan gained

overtime duty and income; thereby disparately treating, unlawfully retaliating against and unlawfully discriminating against Plaintiff because of his race, national origin/ethnicity and in retaliation for Plaintiff's repeated complaints about Defendant Rajan and Rajan's violent and unlawful conduct;

- That Defendants Purtell, D'Adamo, McNamara, Piekarski, D'Adamo, Papamichael, Urprasad, Ariola, Ebrahim and/or Thieleke, acting under color of law and in concert with the other, intentionally failed to notify NYPD's OEEO Office and/or NYPD's Internal Affairs Bureau about any of the Plaintiff's complaints about Defendant Rajan or about Defendant Rajan's unlawful, criminal and violent attack/assault/battery/choking/strangulation/use of excessive force against Plaintiff.

- That as a direct and proximate result of Defendant Rajan's unlawful and criminal attack/assault/battery/choking/use of excessive and unwarranted force against the Plaintiff, Plaintiff was out from duty for the injuries he sustained therefrom, including, but not limited to, the broken left shoulder and subsequent surgery therefor, and, as a result of same, Plaintiff lost his overtime duty income and night shift differential from on or about April 19, 2013 to on or about December 1, 2013 when Plaintiff was forced to resign/retire/constructively terminated; thereby causing Plaintiff to sustain an economic loss of loss of income of approximately more than Forty Thousand Dollars (\$40,000.00) from December 1, 2013 to present date.;

- In addition to the incidents, occurrences, conduct, acts and/or omissions/failures of/by the Defendants stated and set forth above, Plaintiff consistently and repeatedly complained to the aforementioned Defendants, including to Defendant D'Adamo while Plaintiff was assigned to the Intelligence Division, that the Defendants unlawfully and disparately treated minority officers, and in particular Hispanic officers, as compared to their white/Caucasian

counterparts who received preferential and better treatment by/with the Defendants. In response to Plaintiff's complaints about the unlawful disparate treatment by Defendants to minority and, in particular, Hispanic officers, instead of noting or reporting his complaints or taking any remedial/corrective action or investigation, Defendant D'Adamo often told Plaintiff that Plaintiff was a "fictitious Hispanic" who did not speak Spanish fluently and was a "fake" Hispanic; thereby creating, facilitating and fostering an unlawful hostile work environment against Plaintiff and discriminating against Plaintiff because of his race, national origin/ethnicity;

- That in further discrimination, hostile work environment and unlawful retaliation against Plaintiff, and in furtherance of the Defendants' unlawful cover up of Defendant Rajan's criminal and unlawful assault of Plaintiff, Defendants, on or about July 8, 2013, less than three months after Plaintiff's April 17, 2013, April 18, 2013 and April 19, 2013 complaints about Defendant Rajan and Defendant Rjan's attacks/assaults/excessive force used by him against Plaintiff during which Defendant Rajan choked the Plaintiff, filed official NYPD Departmental specifications and charges against Plaintiff for allegedly engaging in a physical altercation with Defendant Rajan when Defendants knew Defendant Rajan was the aggressor and attacked/choked and assaulted Plaintiff from behind, injuring Plaintiff, that Plaintiff was the victim and not the aggressor, that Plaintiff had made previous complaints about Defendant Rajan and his unlawful and violent behavior and that other officers witnessed Defendant Rajan attack/assault/use excessive force against Plaintiff. In continued and further unlawful discrimination, retaliation, and hostile work environment, and in furtherance of the Defendants' practice and custom of covering up police misconduct, and in particular, the misconduct of Defendant Rajan and his unlawful and criminal assault upon Plaintiff, Defendants again modified Plaintiff's duty on or about July 9, 2013, less than three months after Plaintiff's April

17, 2013, April 18, 2013 and April 19, 2013 complaints about Defendant Rajan and Defendant Rjan's attacks/assaults/excessive force used by him against Plaintiff during which Defendant Rajan choked the Plaintiff, and not only took away his badge and weapon, but also took the legally and lawfully possessed firearms that Plaintiff lawfully possessed in his home;

- That these charges against and modification of Plaintiff on or about July 8, 2013 and July 9, 2013, respectively, were unlawfully filed and conducted beyond the time required as per the NYPD patrol guide as more than 30 days had transpired from when Plaintiff was forced by Defendants to tender his resignation/constructively terminated, which he did on or about May 19, 2013 and, as per the Defendants' own rules, codes laws and regulations, any specifications or charges against someone who has tendered their resignation must be filed within 30 days of the date of resignation. Here, the July 8, 2013 filing of specifications and charges against Plaintiff were unlawfully well beyond the 30 days. The Defendants did so herein with the malicious intent to have charges pending against Plaintiff when he retired and/or was forced/compelled to resign/constructive termination, so that Defendants could stamp his retiree ID as "non weapons approved" and further unlawfully retaliate against him;

- That while Plaintiff was out on sick leave due to the serious physical injuries caused by Defendant Rajan, from on or about April 19, 2013 to on or about December 1, 2013, Defendant NYPD by and through its agents, servants and/or employees including, but not limited to Defendants Purtell, D'Adamo, McNamara, Piekarski, D'Adamo, Papamichael, Urprasad, Ariola, Ebrahim and/or Thieleke, unlawfully and continuously harassed Plaintiff. Defendant NYPD had agents/employees/officers visit Plaintiff's home while he was out on sick leave more than they do for/to Plaintiff's white/Caucasian officers counterparts; Defendants assigned a surveillance unit to watch Plaintiff and follow him wherever he went including when Plaintiff

went for medical treatment and appointments with his legal counsel; transferred Plaintiff to VIPER against department regulation as, an officer out on line of duty sick leave cannot be transferred, just so that Defendants could deduct ten (10) percent of Plaintiff's salary; reduced Plaintiff's pension as a direct result of unlawfully reducing his salary/income by assigning him as a punishment to VIPER and reducing his annual salary by ten (10) percent;

- That because of the unlawful discrimination against Plaintiff because of his race, national origin/ethnicity, the hostile work environment, the unlawful disparate treatment of Plaintiff based upon his race, national origin/ethnicity, the unlawful retaliation against Plaintiff for exercising his right to register complaints about the workplace and, in particular for registering repeated complaints about Defendant Rajan, the assault/attack/choking of Plaintiff by Defendant Rajan, the Defendants' failure to take remedial/corrective/disciplinary action against Defendant Rajan, the charges filed by Defendants against Plaintiff, the Defendants' failure to respond at all to Plaintiff's complaints about Defendant Rajan, the unlawful harassment of Plaintiff by Defendants including the Defendants placing him on "Modified" duty/assignment when he was victimized and assaulted by Defendant Rajan and the Defendants harassing and following Plaintiff when he was out on sick leave in order to undergo surgery on his left shoulder, the Defendants unlawfully forced/compelled Plaintiff to retire/resign and constructively terminated Plaintiff on or about December 1, 2013 -- after Plaintiff committed and served the Defendants City of New York and NYPD for over Twenty-Two (22) years; and

- That Defendants' unlawful constructive termination on or about December 1, 2013 of Plaintiff was because of the Defendants' unlawful hostile work environment, disparate treatment, discrimination and retaliation against Plaintiff because of Plaintiff's race, national origin/ethnicity and in retaliation against Plaintiff for exercising his lawful right to register

complaints about the workplace and conditions therein including, but not limited to, his complaints about Defendant Rajan, Defendant Rajan's misconduct, Defendant Rajan's unlawful and violent conduct, Defendant Rajan's violations of citizens' rights and civil liberties and about Defendant Rajan's unlawful and criminal attack, assault, battery, use of unwarranted excessive force, choking and strangulation of Plaintiff which resulted in serious personal injuries to Plaintiff including, but not limited to: a torn and/or broken left shoulder requiring surgery and subsequent medical treatment therefor, injuries/pain to his neck, permanent scars to Plaintiff's left shoulder and arm, pain and suffering, mental anguish, humiliation, emotional distress (intentional and negligent).

126. Defendants New York City and New York City Police Department knew of said Defendants the City of New York, the NYPD, Urprasad, D'adamo, Purtell, Danberry, Rajan, Ariola, Papamichael, Mcnamara, Ebrahim, Piekarski, Traynor, Basendello, Romero and Thieleke, their officers, agents, servants, and/or employees' unlawful, discriminatory, disparate, retaliatory and hostile and/or abusive acts, conduct, treatment, practices, and/or policies against the Plaintiff, and/or, had same Defendants exercised due care they would have discovered same.

127. Defendants the City of New York, the NYPD, Urprasad, D'adamo, Purtell, Danberry, Rajan, Ariola, Papamichael, Mcnamara, Ebrahim, Piekarski, Traynor, Basendello, Romero and Thieleke, their officers, agents, servants, and/or employees, failed to take remedial and/or corrective action to address the unlawful, retaliatory, disparate and discriminatory practices same Defendants caused to be visited upon the Plaintiff.

128. Defendants unlawfully created, maintained, facilitated, perpetuated and/or fostered a discriminatory, disparate, retaliatory, hostile and/or abusive work environment against the Plaintiff based upon his race, color and/or national origin and/or in retaliation for his exercise

of a protected activity of complaining about the hostile work environment/conditions including, but not limited to Plaintiff's aforementioned complaints about Defendant Rajan and Rajan's unlawful assault/attack/use of excessive force against Plaintiff on April 18, 2013 and April 19, 2013.

129. Defendants the City of New York and the New York Police Department, as employers of Defendants Urprasad, D'Adamo, Purtell, Danberry, Rajan, Ariola, Papamichael, Mcnamara, Ebrahim, Piekarski, Traynor, Basendello, Romero, Thieleke and "John Does", are liable for said Defendants' intentional, unlawful, disparate and discriminatory acts, conduct, treatment, practices and/or policies that were intentionally, hostilely, unlawfully and discriminatorily applied to Plaintiff including those unlawful acts by Defendant Rajan against Plaintiff herein.

130. Defendants the City of New York, the NYPD, Urprasad, D'adamo, Purtell, Danberry, Rajan, Ariola, Papamichael, Mcnamara, Ebrahim, Piekarski, Traynor, Basendello, Romero and Thieleke, their officers, agents, servants, and/or employees knew of the unlawful, discriminatory, disparate, retaliatory, hostile and/or abusive acts, conduct, treatment, practices, and/or policies against the Plaintiff, and/or, had Defendants exercised due care, they would have discovered same.

131. That as a direct and proximate result of Defendants the City of New York, the NYPD, Urprasad, D'adamo, Purtell, Danberry, Rajan, Ariola, Papamichael, Mcnamara, Ebrahim, Piekarski, Traynor, Basendello, Romero and Thieleke, their officers, agents, servants, and/or employees' acts, conduct and/or omissions as detailed above, in unlawfully discriminating and retaliating against Plaintiff, and in creating, facilitating, maintaining, fostering and perpetuating a hostile/discriminatory/retaliatory and violent work environment against him,

Plaintiff MARCO TRUJILLO suffered harassment, discrimination, retaliation, demotion, transfers, loss of salary, loss of income, loss of benefits, loss of title/rank/position and was caused to be physically, emotionally and seriously injured that was intolerable to Plaintiff and so intolerable that a reasonable person in Plaintiff's position would have felt compelled to resign.

132. That as a direct and proximate result of Defendants the City of New York, the NYPD, Urprasad, D'adamo, Purtell, Danberry, Rajan, Ariola, Papamichael, Mcnamara, Ebrahim, Piekarski, Traynor, Basendello, Romero and Thieleke, their officers, agents, servants, and/or employees' acts, conduct and/or omissions as detailed above, in unlawfully discriminating and retaliating against him, and in creating and perpetuating a hostile, discriminatory and violent work environment against him, Plaintiff MARCO TRUJILLO'S reaction to the Defendants' adverse employment actions taken against him, by resigning, was reasonable given the totality of the circumstances as set forth and detailed above as the acts of which Plaintiff complains herein would have compelled a reasonable person to also end his or her employment as Plaintiff was forced to do herein and, thereby Defendants unlawfully constructively terminated Plaintiff herein.

133. That at all times herein mentioned, the Defendants the City of New York, the NYPD, Urprasad, D'adamo, Purtell, Danberry, Rajan, Ariola, Papamichael, Mcnamara, Ebrahim, Piekarski, Traynor, Basendello, Romero and Thieleke, their officers, agents, servants, and/or employees' conduct, actions and/or omissions were intentional and willful violations of Title VII of the Civil Rights Act, 42 USC Sections 1981, 1983, and 200, *et seq.* for which Defendants the City of New York and NYPD are liable herein.

134. That as a direct and proximate result of the foregoing, Plaintiff claims damages herein.